



Bill Number: H.B. 2142

Angius Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

School Safety Program and School Safety Center

1. Modifies the School Safety Center's (Center's) authority to use monies appropriated to the School Safety Program (Program) by:
 - a) prohibiting the Center from using more than \$6,500,000 per year from the unexpended and unencumbered monies that were appropriated in a previous fiscal year, if any; and
 - b) allowing the Center to use the monies to administer the Center, in addition to the Program.
2. Requires any school resource officer, juvenile probation officer, school safety officer, school counselor or school social worker who is placed on a school campus pursuant to an approved Program proposal to:
 - a) obtain a fingerprint clearance card (FPCC) from the Department of Public Safety (DPS) before the individual may have contact with students that is not supervised; and
 - b) maintain a valid FPCC during the period of the individual's placement at school.
3. Modifies the School Safety Center Council membership by:
 - a) removing the member who represents a statewide association of law enforcement officers;
 - b) removing the Arizona Peace Officer Standards and Training Board Executive Director;
 - c) removing the Arizona Department of Homeland Security Director;
 - d) removing the member who is a peace officer in a county with a population of more than 200,000 persons;
 - e) removing the member who is a peace officer in a county with a population of fewer than 100,000 persons;
 - f) specifying that the member who is a school superintendent must be a superintendent of a school operated by a school district;
 - g) adding one member who is a superintendent of a school that is operated by a rural school district and who is appointed by the Superintendent of Public Instruction (SPI);
 - h) adding one member who is employed by an Arizona public school as a certificated teacher and who is appointed by the SPI; and
 - i) adding one member who is the president of an association of Arizona fire chiefs or their designee.

Empowerment Scholarship Account Program Modifications

4. Adds noneducational items or luxury goods to the list of goods and services for which empowerment scholarship account (ESA) monies may not be used, including household furniture, fixtures, items that are not primarily used for educational purposes, commercial or household appliances or machinery, home or property improvements, jewelry, lingerie, admission to water parks or amusement parks, home swimming pools, hot tubs, saunas, gift cards or certificates, out-of-state or international travel, museums or excursions, child care, babysitting, restaurant dining, hotels, lodging, bounce houses, water slides, motor vehicles and motorized watercraft.

Amendment explanation prepared by Mason Holler

06/12/2026

5. Applies the requirements on school district and charter school personnel relating to applying for a identify verified fingerprint card to:
 - a) all teaching staff, school personnel and any other individuals who has unsupervised contact at a qualified school; and
 - b) individuals who accept ESA monies for tutoring or teaching services.
6. Adds qualified schools that accept ESA monies for tuition and fees to the list of entities that the DPS Director must authorize the exchange of criminal justice information between the Central State Repository or Arizona Criminal Justice Information System.
7. Requires a qualified school that accepts ESA monies for tuition and fees to require all teaching staff, school personnel and any other individuals who have unsupervised contact with students to apply for an FPCC as prescribed and have an FPCC before the individual may provide services directly to students or engage in unsupervised contact with students, rather than be fingerprinted.
8. Prohibits the Arizona Department of Education (ADE), until at least one year after the general effective date, from determining that tuition or fees at a qualified school are not an allowable ESA expense solely because one or more employees, contractors or other individuals who have not yet obtained an FPCC provide services directly to qualified students or have contact with students that is not supervised.
9. Adds, to the requirements for an individual to accept ESA monies for tutoring or teaching services, that the individual be at least 18 years old and have a valid FPCC.
10. Requires ADE to remove any individual who provides tutoring or teaching services and fails to maintain a valid FPCC from all platforms that ADE provides to parents and qualified students for the purchase of goods or educational services using ESA monies.
11. Requires ADE to notify a parent as prescribed that their qualified student's ESA will be closed if the parent does not renew the qualified student's ESA for one academic year, rather than a period of three academic years.
12. Specifies that, if a parent does not renew an ESA or respond to the prescribed notification relating to the ESA's closure, ADE must close the qualified student's ESA and the State Treasurer must transfer any remaining monies to the state General Fund (state GF).
13. Requires, if the amount of unexpended and unencumbered monies remaining in a qualified student's ESA on June 30 exceeds the maximum prior year carryforward, the State Treasurer to transfer the excess amount to the state GF beginning in the 2027-2028 school year.
14. Specifies that the *maximum prior year carryforward* is:
 - a) \$50,000, for the ESA of a qualified student who is identified as a child with a disability; or
 - b) \$24,000, for the ESA of a qualified student who is not identified as a child with a disability.
15. Prohibits, if an ESA has a balance that exceeds the maximum prior year carryforward amount on the general effective date, the State Treasurer from transferring monies from the ESA to the state GF.
16. Allows ADE to deposit, in the ESA Program Fund, monies that ADE would otherwise allocate to a qualified student's prior school district or expected school district of attendance in an amount that is not more than 0.5 percent of the sum of the Base Support Level and charter additional assistance generated by the qualified student if they were attending a charter school.

17. Specifies that ADE must separately account for the outlined monies that are transferred to the ESA Program Fund as prescribed.
18. Authorizes ESA Program Fund monies to be used on technology and personnel necessary for verifying eligibility, reviewing expenditures and managing accounts.
19. Requires ADE, by August 1 of each year, to present to the State Board of Education (SBE) a detailed expenditure plan for the ESA Program Fund.
20. Stipulates that, if the costs to administer the ESA Program increase, the SBE must submit to the Staff of the Joint Legislative Budget Committee and the Governor's Office of Strategic Planning and Budgeting, by October 1, a report that explains the increased costs and recommends an increase in the amount of monies that are deposited into the ESA Program Fund.
21. Defines terms.
22. Specifies that the provisions of this legislation relating to ESA Program modifications do not become effective if one of the following measures is placed on the ballot at the next general election:
 - a) the Protect Education, Accountability Now Act (I-06-2026);
 - b) the Protect Education Act (I-09-2026); or
 - c) the Arizona Empowerment Scholarship Accounts Reform and Accountability Act (I-10-2026).

Miscellaneous

23. Appropriates 15 FTE positions from the state GF in FY 2027 to ADE to administer the ESA Program.
24. Allows individuals who are placed at a school pursuant to a Program proposal, are qualified school personnel or accept ESA monies for tutoring or teaching services to use an expired FPCC to satisfy the FPCC requirements if the individual signs the prescribed affidavit.
25. Makes technical and conforming changes.

ANGIUS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2142
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 15-106, Arizona Revised Statutes, is amended
3 to read:

4 15-106. Identity verified fingerprints; definition

5 [A.] An applicant who applies for a new teaching certificate in
6 order to teach in a school district, a participant in field experience or
7 student teaching in this state, an applicant who applies for a renewal of
8 an existing teaching certificate in order to continue teaching in a school
9 district, an applicant who is required for the first time to be
10 fingerprinted in order to teach in a charter school and an applicant who
11 is required to renew fingerprints in order to continue teaching in a
12 charter school pursuant to section 15-183, an applicant who is required to
13 be fingerprinted pursuant to section 15-512[, ANY PERSON WHO IS REQUIRED
14 TO OBTAIN AND MAINTAIN A FINGERPRINT CLEARANCE CARD PURSUANT TO CHAPTER 19
15 OF THIS TITLE] and any person who is contracted by this state, by a school
16 district or by a charter school to provide tutoring services shall submit
17 for an identity verified fingerprint card that will be used by the
18 department of public safety to process the fingerprint clearance card
19 pursuant to title 41, chapter 12, article 3.1 as follows:

20 1. The applicant shall submit a request for an application packet
21 from the department of public safety.

22 2. The application packet shall be contained in an envelope
23 specified by the department of public safety and shall include the
24 following:

25 (a) A blank applicant fingerprint card.

26 (b) An application for a fingerprint clearance card.

27 (c) Instructions for ~~[the return of]~~ [RETURNING] the application
28 packet.

1 3. A school district[,] [or] charter school [OR QUALIFIED SCHOOL]
2 may contract for fingerprinting services through an entity or entities and
3 shall provide a copy of the instructions to the entity or entities as
4 provided by the department of public safety regarding the submission of
5 identity verified fingerprints. If a school district[,] [or] charter
6 school [OR QUALIFIED SCHOOL] elects to provide fingerprinting services,
7 the school district[,] [or] charter school [OR QUALIFIED SCHOOL] shall
8 authorize an individual employed by the school district[,] [or] charter
9 school [OR QUALIFIED SCHOOL] to administer the services.

10 4. The department of public safety shall provide instructions to
11 law enforcement agencies[,] [and] public schools [AND QUALIFIED SCHOOLS]
12 regarding the submission of identity verified fingerprints. The
13 department of public safety shall reject the application for a fingerprint
14 clearance card if the application is not correct or is not submitted
15 according to the instructions provided by the department of public safety.

16 5. The applicant, at the time that identity verified fingerprints
17 are taken, shall provide the law enforcement agency, school district,
18 charter school[, QUALIFIED SCHOOL] or other entity with a completed
19 application form for a fingerprint clearance card, the fingerprint card
20 with the requisite demographic information and the required fee in the
21 form of a money order or cashier's check made out to the department of
22 public safety. The law enforcement agency, school district, charter
23 school[, QUALIFIED SCHOOL] or other entity shall verify the identity of
24 the applicant through recognized means of photographic identification and
25 a comparison of the demographic information on the photographic
26 identification against the demographic information on the application form
27 and the fingerprint card. The authorized person taking the fingerprints
28 shall enter on the application form a description of the photographic
29 identification presented by the applicant. The law enforcement agency,
30 school district, charter school[, QUALIFIED SCHOOL] or other entity shall
31 place the completed fingerprint card, the completed application form or
32 any other form required by the department of public safety and the fee
33 provided by the applicant in the postage prepaid envelope provided by the
34 department of public safety and mail it to the fingerprinting division in
35 the department of public safety. A law enforcement agency, school
36 district, charter school[, QUALIFIED SCHOOL] or other entity may charge
37 the applicant a reasonable fee for services provided pursuant to this
38 section.

39 6. Fingerprints submitted electronically or through an
40 internet-based system pursuant to section 41-1758.01 shall include a
41 completed application for a fingerprint clearance card, the requisite
42 applicant demographic information and the required fee, and shall be
43 identity verified in accordance with instructions provided by the
44 department of public safety. The department shall reject the application
45 for a fingerprint clearance card if the application is not correct or is
46 not submitted according to the department's instructions. The entity or
47 entities contracted by the department shall comply with:

1 (a) All information privacy and security measures and submission
2 standards established by the department.

3 (b) The information technology security policy approved by the
4 department.

5 7. The department of public safety shall process the application
6 packet in the same manner prescribed for fingerprint clearance cards
7 issued pursuant to title 41, chapter 12, article 3.1.

8 8. The department of public safety shall provide for digital
9 storage and retrieval of identity verified fingerprints taken pursuant to
10 this section. The fingerprints taken pursuant to this section shall be
11 digitally designated in the fingerprint archive as identity verified
12 fingerprint records.

13 9. A person who has a set of identity verified fingerprints on file
14 with the department of public safety pursuant to this section ~~[shall]~~ [IS]
15 not ~~[be]~~ required to submit a new set of fingerprints to the department of
16 public safety to renew the person's fingerprint clearance card. On
17 receipt of the required application form and fee for a renewal fingerprint
18 clearance card from a person required to submit identity verified
19 fingerprints, the department of public safety shall attempt to use the
20 electronic copy of the applicant's identity verified fingerprints that are
21 retained pursuant to this section to conduct the state and national
22 criminal records checks. The department of public safety may require the
23 applicant to submit a new set of identity verified fingerprints if the
24 department of public safety determines that the original fingerprints
25 submitted have been lost or damaged or are found to be otherwise of
26 insufficient quality to conduct a valid technical fingerprint search
27 either by the department of public safety or the federal bureau of
28 investigation.

29 10. A person who participates in a teacher preparation program that
30 is approved by the state board of education and who does not participate
31 in field experience or student teaching in this state ~~[shall]~~ [IS] not
32 ~~[be]~~ required to obtain a fingerprint clearance card pursuant to this
33 section.

34 [B. FOR THE PURPOSES OF THIS SECTION, "QUALIFIED SCHOOL" HAS THE
35 SAME MEANING PRESCRIBED IN SECTION 15-2401.]>>

36 Sec. 2. Section 15-154, Arizona Revised Statutes, is amended to
37 read:

38 15-154. School safety program; purpose; school safety center;
39 program proposals; requirements; annual report;
40 public records exemption; fingerprint clearance
41 cards; definitions

42 A. The school safety program is established within THE SCHOOL
43 SAFETY CENTER WITHIN the department of education to support, promote and
44 enhance safe and effective learning environments for all students by
45 supporting the costs of placing school resource officers, juvenile
46 probation officers, school safety officers, school counselors and school
47 social workers on school campuses. The school safety program may also

1 support the costs of purchasing safety technology, safety training and
2 infrastructure improvements for school campuses as provided in subsection
3 D of this section. A school district or charter school may apply to
4 participate in the school safety program as provided in this section for
5 up to three fiscal years by submitting by April 15 a program proposal to
6 the ~~department of education~~ SCHOOL SAFETY CENTER. A school district or
7 charter school that receives approval for a three-year program under this
8 subsection may annually submit a modified spending plan for its approved
9 program.

10 B. A program proposal submitted by a school district or charter
11 school for supporting the costs of placing school resource officers,
12 juvenile probation officers or school safety officers, or any combination
13 of these officers, on a school campus shall contain:

14 1. A detailed description of the school safety needs of the charter
15 school or school district.

16 2. A plan to provide the current school building blueprints, floor
17 plans and school safety assessments for each school site to the local law
18 enforcement agency, emergency medical services provider and fire
19 department that provides services to the school site.

20 3. A plan for implementing a law-related education program or a
21 plan that demonstrates the existence of a law-related education program as
22 a school safety prevention strategy.

23 4. A plan to use trained school resource officers, juvenile
24 probation officers or school safety officers, or any combination of these
25 officers, in the school.

26 5. A plan to train school resource officers, juvenile probation
27 officers or school safety officers, or any combination of these officers,
28 on the family educational rights and privacy act, civil rights and
29 adolescent mental health issues.

30 6. If the school district or charter school has already
31 participated in the school safety program, information on the success,
32 compliance and implementation of the most recent grant.

33 C. A program proposal submitted by a school district or charter
34 school for supporting the costs of placing school counselors or school
35 social workers, or both, on a school campus shall contain:

36 1. A detailed description of the school safety needs of the charter
37 school or school district.

38 2. A plan to provide the current school building blueprints, floor
39 plans and school safety assessments for each school site to the local law
40 enforcement agency, emergency medical services provider and fire
41 department that provides services to the school site.

42 3. A plan for implementing a school guidance and counseling program
43 that includes the following:

44 (a) A detailed description of the relationship between the school
45 counselor or the school social worker, or both, and local community
46 resources.

1 (b) A plan for using school counselor and school social worker
2 services in the school, or both.

3 (c) A detailed description of the methods for evaluating the
4 effectiveness of the school guidance and counseling plan.

5 (d) Policies on confidentiality under the school guidance and
6 counseling plan.

7 (e) Policies on notifying parents and other family members of
8 issues or concerns as identified in the school guidance and counseling
9 plan.

10 (f) A detailed description of the school's, school district's or
11 charter school's referral procedures to the appropriate community entities
12 and state agencies.

13 4. If the school district or charter school has already
14 participated in the school safety program, information on the success,
15 compliance and implementation of the most recent approved program
16 proposal.

17 D. If a school district or charter school whose program proposal
18 pursuant to subsection B or C of this section was approved by the state
19 board of education cannot place one or more of the school resource
20 officers, juvenile probation officers, school safety officers, school
21 counselors or school social workers, or any combination of these
22 individuals, as included in the approved program proposal, the school
23 district or charter school may submit an alternative program proposal for
24 supporting the costs of purchasing safety technology, safety training and
25 infrastructure improvements for its school campus or campuses. An
26 alternative program proposal submitted pursuant to this subsection shall
27 contain:

28 1. A detailed description of the safety needs of the school
29 district or charter school.

30 2. A detailed description of the proposed expenditures and capital
31 improvements, including:

32 (a) The safety needs that each proposed expenditure will address.

33 (b) The specific technology or training program that the school
34 district or charter school seeks to acquire.

35 (c) For infrastructure improvements, all costs associated with the
36 improvements, including architectural and engineering fees, safety
37 evaluations and equipment for securing entrances and exits.

38 3. Any other information requested by the ~~department of education~~
39 SCHOOL SAFETY CENTER.

40 E. The ~~department of education~~ SCHOOL SAFETY CENTER shall review
41 and administer the school resource officers, juvenile probation officers
42 and school safety officers program proposals in cooperation with the
43 courts, law enforcement agencies and law-related education providers
44 awarded a contract pursuant to section 41-2534, subject to review and
45 approval by the state board of education. The ~~department of education~~
46 SCHOOL SAFETY CENTER shall use relevant crime statistics to assess the
47 needs of each program proposal and shall visit school districts and

1 charter schools that submit program proposals in order to verify the
2 information contained in the program proposals. The ~~department of~~
3 ~~education~~ SCHOOL SAFETY CENTER shall contract to provide guidelines,
4 curricula and support resources for school resource officers, juvenile
5 probation officers and school safety officers to use in implementing a
6 law-related education program.

7 F. The ~~department of education~~ SCHOOL SAFETY CENTER shall review
8 and administer the school counselors and school social workers program
9 proposals in cooperation with school administrators, principals, teachers,
10 parents and community mental health professionals. The ~~department of~~
11 ~~education~~ SCHOOL SAFETY CENTER shall use relevant school-level academic,
12 social and emotional statistics to assess the needs of each program
13 proposal and shall visit school districts and charter schools that submit
14 program proposals in order to verify the information contained in the
15 program proposals.

16 G. The ~~department of education~~ SCHOOL SAFETY CENTER shall review
17 and administer the safety technology, safety training and infrastructure
18 improvements program proposals. The ~~department~~ SCHOOL SAFETY CENTER shall
19 use relevant crime statistics to assess the needs of each program proposal
20 and may visit school districts and charter schools that submit program
21 proposals in order to verify the information contained in the program
22 proposals. The ~~department~~ SCHOOL SAFETY CENTER may approve all or part of
23 a safety technology, safety training or infrastructure improvement program
24 proposal.

25 H. The ~~department of education~~ SCHOOL SAFETY CENTER, subject to the
26 review and approval of the state board of education, shall distribute
27 monies to the school districts and charter schools that are in compliance
28 with program requirements prescribed in this section and in section
29 15-154.02 and whose program proposals have been approved by the state
30 board of education.

31 I. The ~~department of education~~ SCHOOL SAFETY CENTER shall review
32 program proposals submitted by school districts and charter schools for
33 participation in the school safety program and shall select school sites
34 that are eligible to receive funding based on school safety needs pursuant
35 to this section. The ~~department of education~~ SCHOOL SAFETY CENTER may
36 prioritize program proposals for school resource officer, juvenile
37 probation officer and school safety officer grants to school districts and
38 charter schools that have agreements to share the cost of the school
39 resource officer, juvenile probation officer or school safety officer with
40 a law enforcement agency or the courts.

41 J. The ~~department of education~~ SCHOOL SAFETY CENTER shall evaluate
42 the effectiveness of all the approved program proposals submitted pursuant
43 to subsections B, C and D of this section within the school safety program
44 and report on the activities of the program and the participants in the
45 school safety program to the president of the senate, the speaker of the
46 house of representatives and the governor on or before November 1 of each
47 year and shall provide a copy of this report to the secretary of

1 state. The evaluation and report shall include survey results from
2 participating schools and data from participating schools on the impact of
3 participating in the school safety program. The ~~department~~ SCHOOL SAFETY
4 CENTER shall establish data guidelines for school safety program
5 participants to follow in reporting pursuant to this subsection.

6 K. The ~~school safety program established by this section shall~~
7 ~~include~~ SCHOOL SAFETY CENTER SHALL ADOPT a school safety program guidance
8 manual ~~adopted by the department of education~~ FOR THE SCHOOL SAFETY
9 PROGRAM ESTABLISHED BY THIS SECTION that requires a dispute resolution
10 process to be included in the service agreement between a school district
11 or charter school that submitted a program proposal and received a school
12 resource officer grant or school safety officer grant from the school
13 safety program and the law enforcement agency that provides services to
14 the school district or charter school.

15 L. Any appropriations that are made to the department of education
16 OR THE SCHOOL SAFETY CENTER WITHIN THE DEPARTMENT OF EDUCATION for the
17 approved program proposals within the school safety program are exempt
18 from the provisions of section 35-190 relating to lapsing of
19 appropriations. THE SCHOOL SAFETY CENTER MAY USE NOT MORE THAN \$6,500,000
20 PER YEAR FROM THE [UNEXPENDED AND UNENCUMBERED] MONIES [THAT WERE]
21 APPROPRIATED FOR THE SCHOOL SAFETY PROGRAM [IN A PREVIOUS FISCAL YEAR, IF
22 ANY.] FOR THE COSTS OF ADMINISTERING THE SCHOOL SAFETY PROGRAM [AND THE
23 SCHOOL SAFETY CENTER]. All monies that are not used for an approved
24 program proposal within the school safety program during the fiscal year
25 for which the monies were appropriated revert to the ~~department of~~
26 ~~education~~ SCHOOL SAFETY CENTER for distribution to the program in the
27 following fiscal year.

28 M. ~~Monies received by~~ A school district or charter school ~~under~~
29 ~~THAT RECEIVES MONIES PURSUANT TO~~ the school safety program shall ~~be spent~~
30 ~~USE THE MONIES~~ to implement the SCHOOL DISTRICT'S OR CHARTER SCHOOL'S
31 approved program ~~proposals~~ PROPOSAL.

32 N. The auditor general shall include the school safety program as
33 part of its ongoing sunset review of agencies and programs.

34 O. Notwithstanding any other law, school building blueprints and
35 floor plans are not public records and are exempt from title 39,
36 chapter 1.

37 [P. ANY SCHOOL RESOURCE OFFICER, JUVENILE PROBATION OFFICER, SCHOOL
38 SAFETY OFFICER, SCHOOL COUNSELOR OR SCHOOL SOCIAL WORKER WHO IS PLACED ON
39 A SCHOOL CAMPUS PURSUANT TO AN APPROVED PROGRAM PROPOSAL THAT WAS
40 SUBMITTED PURSUANT TO SUBSECTION B OR C OF THIS SECTION SHALL OBTAIN A
41 FINGERPRINT CLEARANCE CARD PURSUANT TO TITLE 41, CHAPTER 12, ARTICLE 3.1
42 BEFORE THE INDIVIDUAL MAY HAVE CONTACT WITH STUDENTS THAT IS NOT
43 SUPERVISED AS DEFINED IN SECTION 15-505 AND SHALL MAINTAIN A VALID
44 FINGERPRINT CLEARANCE CARD DURING THE PERIOD OF THE INDIVIDUAL'S PLACEMENT
45 AT A SCHOOL CAMPUS.]

46 [P.] [Q.] For the purposes of this section:

1 1. "Law-related education" means interactive education to equip
2 children and youth with knowledge and skills pertaining to the law, school
3 safety and effective citizenship.

4 2. "Law-related education program" means a program designed to
5 provide children and youth with knowledge, skills and activities
6 pertaining to the law and legal process and to promote law-abiding
7 behavior with the purpose of preventing children and youth from engaging
8 in delinquency or violence and enabling them to become productive
9 citizens.

10 3. "School counselor" means a professional educator who holds a
11 valid school counselor certificate issued by the department of education.

12 4. "School guidance and counseling program" means a counseling
13 program that supports, promotes and enhances the academic, personal,
14 social, emotional and career development of all students.

15 5. "School resource officer" means any of the following:

16 (a) A peace officer.

17 (b) A full-authority reserve peace officer who is certified by the
18 Arizona peace officer standards and training board.

19 (c) An individual who was previously employed as a peace officer in
20 this state, who retired in good standing and who is assigned to
21 participate in the school safety program by a law enforcement agency
22 pursuant to section 15-155.

23 6. "School safety officer" means a school resource officer who is
24 working in an off-duty capacity.

25 7. "School social worker" means a professional educator who holds a
26 valid school social worker certificate issued by the department of
27 education.

28 Sec. 3. Section 15-154.02, Arizona Revised Statutes, is amended to
29 read:

30 15-154.02. Emergency response plans: school safety
31 assessments; approved providers; triennial
32 safety assessments

33 A. Each school district and charter school that receives monies
34 pursuant to section 15-154 for an approved school safety program shall do
35 both of the following:

36 1. Develop an emergency response plan pursuant to section 15-341,
37 subsection A, paragraph 31 or section 15-183, subsection E, paragraph 10
38 ~~to satisfy the requirements prescribed in this paragraph.~~

39 2. Every five years, contract with a school safety assessment
40 provider from the list compiled pursuant to subsection B of this section
41 to conduct a school safety assessment, including an assessment of the
42 physical security of each school site and a review of the emergency
43 response plan for each school site.

44 B. The **SCHOOL SAFETY CENTER WITHIN THE** department of education
45 shall compile a list of approved school safety assessment providers and
46 shall make the list available to school districts and charter schools that
47 participate in the school safety program established by section 15-154.

1 C. Every three years, the ~~department of education~~ SCHOOL SAFETY
2 CENTER shall select a random sample of school districts and charter
3 schools that are participating in the school safety program established by
4 section 15-154 and shall conduct a safety assessment of the selected
5 school districts and charter schools. The ~~department~~ SCHOOL SAFETY CENTER
6 shall provide a copy of the safety assessment results to the respective
7 school district's governing board or charter school's governing body and
8 the administrators of each school site that was assessed.

9 Sec. 4. Section 15-155, Arizona Revised Statutes, is amended to
10 read:

11 15-155. School safety program; funding

12 A. The SCHOOL SAFETY CENTER WITHIN THE department of education
13 shall cooperate with the county school superintendent, the county sheriff
14 and the local chief of police to allow a law enforcement agency, with the
15 consent of the school, to assign a peace officer, a full-authority reserve
16 peace officer who is certified by the Arizona peace officer standards and
17 training board or an individual who was previously employed as a peace
18 officer in this state and who retired in good standing to participate in
19 the school safety program in each school in the county. The cost of the
20 peace officer is a state charge that is funded by the ~~department of~~
21 ~~education~~ SCHOOL SAFETY CENTER, except for agreements to share the cost of
22 the school resource officer pursuant to section 15-154, subsection I.

23 B. In cooperation with the ~~department of education~~ SCHOOL SAFETY
24 CENTER and the county school superintendent and with the consent of the
25 school, the presiding judge of the juvenile court may assign juvenile
26 probation officers to participate in the school safety program in each
27 school in the county. The cost of juvenile probation officers is a state
28 charge that is funded by the ~~department of education~~ SCHOOL SAFETY CENTER,
29 except for agreements to share the cost of the juvenile probation officer
30 pursuant to section 15-154, subsection I.

31 Sec. 5. Title 15, chapter 2, article 2, Arizona Revised Statutes,
32 is amended by adding section 15-249.20, to read:

33 15-249.20. School safety center; duties; school safety center
34 council; members

35 A. THE SCHOOL SAFETY CENTER IS ESTABLISHED WITHIN THE DEPARTMENT OF
36 EDUCATION. THE SCHOOL SAFETY CENTER, WITH SUPPORT FROM THE SCHOOL SAFETY
37 CENTER COUNCIL ESTABLISHED BY SUBSECTION B OF THIS SECTION, SHALL:

38 1. USE SCHOOL SAFETY SUBJECT MATTER EXPERTISE TO IDENTIFY BEST
39 PRACTICES FOR ENHANCING SCHOOL SAFETY IN THIS STATE.

40 2. PROVIDE STATEWIDE TRAINING AND PROFESSIONAL DEVELOPMENT TO
41 SCHOOL SAFETY PERSONNEL, INCLUDING TRAINING RELATED TO EMERGENCY
42 PREPAREDNESS, THREAT RESPONSE, CAMPUS SAFETY PROTOCOLS AND PREVENTION
43 MEASURES THAT PROMOTE SCHOOL SAFETY.

44 3. ADMINISTER THE SCHOOL SAFETY PROGRAM ESTABLISHED BY SECTION
45 15-154, INCLUDING REVIEWING GRANT APPLICATIONS, MONITORING GRANT
46 RECIPIENTS TO ENSURE COMPLIANCE WITH ALL PROGRAM REQUIREMENTS, REVIEWING
47 PROGRAM PERFORMANCE AND ENFORCING CORRECTIVE ACTION REQUIREMENTS.

1 4. PROVIDE TECHNICAL ASSISTANCE TO SCHOOL DISTRICTS AND CHARTER
2 SCHOOLS FOR THE DEVELOPMENT OF PROGRAMS PROPOSALS FOR THE SCHOOL SAFETY
3 PROGRAM PURSUANT TO SECTION 15-154.

4 5. PROVIDE TECHNICAL ASSISTANCE TO SCHOOL DISTRICTS AND CHARTER
5 SCHOOLS FOR THE DEVELOPMENT OF EMERGENCY RESPONSE PLANS PURSUANT TO
6 SECTION 15-183, SUBSECTION E, PARAGRAPH 10, SECTION 15-341, SUBSECTION A,
7 PARAGRAPH 31 AND SECTION 15-154.02, SUBSECTION A, PARAGRAPH 1.

8 6. RESEARCH AND EVALUATE SCHOOL SAFETY PROGRAMS, INITIATIVES,
9 OUTCOMES AND PREVENTION MEASURES THAT PROMOTE SCHOOL SAFETY.

10 7. CONDUCT SCHOOL SAFETY RISK ASSESSMENTS. THE SCHOOL SAFETY
11 CENTER MAY OFFER SPECIFIC RECOMMENDATIONS TO A SCHOOL BASED ON THE
12 FINDINGS OF A RISK ASSESSMENT THAT IS CONDUCTED PURSUANT TO THIS
13 PARAGRAPH.

14 8. ADOPT GUIDELINES FOR THREAT VULNERABILITY ASSESSMENTS AND
15 PHYSICAL CAMPUS SECURITY PLANNING.

16 9. ADOPT GUIDELINES FOR COORDINATION BETWEEN SCHOOLS, THE DIVISION
17 OF EMERGENCY MANAGEMENT WITHIN THE DEPARTMENT OF EMERGENCY AND MILITARY
18 AFFAIRS, THE DEPARTMENT OF PUBLIC SAFETY AND ANY LOCAL LAW ENFORCEMENT
19 AGENCY, EMERGENCY MEDICAL SERVICES PROVIDER OR FIRE DEPARTMENT THAT
20 PROVIDES SERVICES TO SCHOOLS.

21 10. PROVIDE TECHNICAL ASSISTANCE TO STATE AND LOCAL LAW ENFORCEMENT
22 AGENCIES TO ENHANCE EACH AGENCY'S ABILITY TO RESPOND TO ONLINE THREATS
23 AGAINST ONE OR MORE SCHOOLS.

24 B. THE SCHOOL SAFETY CENTER COUNCIL IS ESTABLISHED TO SUPPORT THE
25 SCHOOL SAFETY CENTER. THE COUNCIL IS COMPOSED OF THE FOLLOWING MEMBERS:

26 1. ONE MEMBER WHO REPRESENTS THE SCHOOL SAFETY CENTER AND WHO IS
27 APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.

28 2. ONE MEMBER WHO REPRESENTS A STATEWIDE ASSOCIATION OF CHIEFS OF
29 POLICE AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.

30 3. ONE MEMBER WHO REPRESENTS A STATEWIDE ASSOCIATION OF SHERIFFS
31 AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.

32 ~~[4. ONE MEMBER WHO REPRESENTS A STATEWIDE ASSOCIATION OF LAW~~
33 ~~ENFORCEMENT OFFICERS AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC~~
34 ~~INSTRUCTION.~~

35 ~~5. THE EXECUTIVE DIRECTOR OF THE ARIZONA PEACE OFFICER STANDARDS~~
36 ~~AND TRAINING BOARD OR THE EXECUTIVE DIRECTOR'S DESIGNEE.~~

37 ~~6.] [4.] THE DIRECTOR OF THE DEPARTMENT OF EMERGENCY AND MILITARY~~
38 ~~AFFAIRS OR THE DIRECTOR'S DESIGNEE.~~

39 ~~[7. THE DIRECTOR OF THE ARIZONA DEPARTMENT OF HOMELAND SECURITY OR~~
40 ~~THE DIRECTOR'S DESIGNEE.~~

41 ~~8.] [5.] ONE MEMBER WHO REPRESENTS A STATEWIDE ASSOCIATION OF~~
42 ~~SCHOOL RESOURCE OFFICERS AND WHO IS APPOINTED BY THE SUPERINTENDENT OF~~
43 ~~PUBLIC INSTRUCTION.~~

44 ~~[9. ONE MEMBER WHO IS A PEACE OFFICER IN A COUNTY WITH A POPULATION~~
45 ~~OF AT LEAST TWO HUNDRED THOUSAND PERSONS AND WHO IS APPOINTED BY THE~~
46 ~~SUPERINTENDENT OF PUBLIC INSTRUCTION.~~

~~10. ONE MEMBER WHO IS A PEACE OFFICER IN A COUNTY WITH A POPULATION OF LESS THAN ONE HUNDRED THOUSAND PERSONS AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.~~

~~11.] [6.] ONE MEMBER WHO IS A SUPERINTENDENT OF A SCHOOL [THAT IS OPERATED BY A RURAL SCHOOL DISTRICT] IN THIS STATE AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION. [FOR THE PURPOSES OF THIS PARAGRAPH, "RURAL" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-249.13.~~

~~7. ONE MEMBER WHO IS A SUPERINTENDENT OF A SCHOOL THAT IS OPERATED BY A SCHOOL DISTRICT IN THIS STATE AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.~~

~~8. ONE MEMBER WHO IS EMPLOYED BY A PUBLIC SCHOOL IN THIS STATE AS A CERTIFICATED TEACHER AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.]~~

~~12.] [9.] ONE MEMBER WHO IS EMPLOYED BY A SCHOOL DISTRICT [IN THIS STATE] TO OVERSEE SCHOOL SAFETY AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.~~

~~13.] [10.] ONE MEMBER WHO REPRESENTS A NONPROFIT CORPORATION THAT OPERATES AS A RISK RETENTION POOL FOR PUBLIC SCHOOLS AND COMMUNITY COLLEGE DISTRICTS IN THIS STATE AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.~~

~~14.] [11.] ONE MEMBER WHO REPRESENTS A STATEWIDE ORGANIZATION THAT SUPPORTS SCHOOL COUNSELORS AND SOCIAL WORKERS AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.~~

~~15.] [12.] ONE MEMBER WHO REPRESENTS A UNIVERSITY UNDER THE JURISDICTION OF THE ARIZONA BOARD OF REGENTS, WHO RESEARCHES SCHOOL SAFETY AND WHO IS APPOINTED BY THE SUPERINTENDENT OF PUBLIC INSTRUCTION.~~

~~13. THE PRESIDENT OF AN ASSOCIATION OF FIRE CHIEFS IN THIS STATE OR THE PRESIDENT'S DESIGNEE.]~~

~~16.] [14.] ONE MEMBER WHO IS APPOINTED BY THE SPEAKER OF THE HOUSE OF REPRESENTATIVES.~~

~~17.] [15.] ONE MEMBER WHO IS APPOINTED BY THE PRESIDENT OF THE SENATE.~~

C. THE MEMBERS OF THE SCHOOL SAFETY CENTER COUNCIL SHALL SELECT A CHAIRPERSON FROM AMONG THE COUNCIL MEMBERS EACH CALENDAR YEAR. MEMBERS ARE NOT ELIGIBLE TO RECEIVE COMPENSATION BUT ARE ELIGIBLE FOR REIMBURSEMENT OF EXPENSES PURSUANT TO TITLE 38, CHAPTER 4, ARTICLE 2. THE INITIAL MEMBERS SHALL ASSIGN THEMSELVES BY LOT TO TERMS OF TWO, THREE AND FOUR YEARS IN OFFICE. ALL SUBSEQUENT MEMBERS SERVE FOUR-YEAR TERMS OF OFFICE. THE CHAIRPERSON SHALL NOTIFY THE SUPERINTENDENT OF PUBLIC INSTRUCTION, THE SPEAKER OF THE HOUSE OF REPRESENTATIVES AND THE PRESIDENT OF THE SENATE OF THESE TERMS. THE DEPARTMENT OF EDUCATION SHALL PROVIDE MEETING SPACE AND ADMINISTRATIVE SUPPORT TO THE COUNCIL.

1 <<Sec. 6. Section 15-2402, Arizona Revised Statutes, is amended to
2 read:

3 15-2402. Arizona empowerment scholarship accounts: funds

4 A. Arizona empowerment scholarship accounts are established to
5 provide options for the education of students in this state.

6 B. To enroll a qualified student for an Arizona empowerment
7 scholarship account, the parent of the qualified student must sign an
8 agreement to do all of the following:

9 1. Use a portion of the Arizona empowerment scholarship account
10 monies allocated annually to provide an education for the qualified
11 student in at least the subjects of reading, grammar, mathematics, social
12 studies and science, unless the Arizona empowerment scholarship account is
13 allocated monies according to a transfer schedule other than quarterly
14 transfers pursuant to section 15-2403, subsection G.

15 2. Not enroll the qualified student in a school district or charter
16 school and release the school district from all obligations to educate the
17 qualified student. This paragraph does not:

18 (a) Relieve the school district or charter school that the
19 qualified student previously attended from the obligation to conduct an
20 evaluation pursuant to section 15-766.

21 (b) Require the qualified student to withdraw from a school
22 district or charter school before enrolling for an Arizona empowerment
23 scholarship account if the qualified student withdraws from the school
24 district or charter school before receiving any monies in the qualified
25 student's Arizona empowerment scholarship account.

26 (c) Prevent the qualified student from applying in advance for an
27 Arizona empowerment scholarship account to be funded beginning the
28 following school year, subject to section 15-2403, subsection H.

29 3. Not accept a scholarship from a school tuition organization
30 pursuant to title 43 concurrently with an Arizona empowerment scholarship
31 account for the qualified student in the same year a parent signs the
32 agreement pursuant to this section.

33 4. Use monies deposited in the qualified student's Arizona
34 empowerment scholarship account only for the following expenses of the
35 qualified student:

36 (a) Tuition or fees at a qualified school that requires all
37 teaching staff and [SCHOOL] personnel [AND ANY OTHER INDIVIDUALS] who have
38 [unsupervised] contact with students [THAT IS NOT SUPERVISED AS DEFINED IN
39 SECTION 15-505] to [be fingerprinted] [APPLY FOR A FINGERPRINT CLEARANCE
40 CARD PURSUANT TO SECTION 15-106 AND TO HAVE A VALID FINGERPRINT CLEARANCE
41 CARD PURSUANT TO TITLE 41, CHAPTER 12, ARTICLE 3.1 BEFORE THE INDIVIDUAL
42 MAY PROVIDE SERVICES DIRECTLY TO STUDENTS OR ENGAGE IN UNSUPERVISED
43 CONTACT WITH STUDENTS].

44 (b) Textbooks required by a qualified school.

45 (c) If the qualified student meets any of the criteria specified in
46 section 15-2401, paragraph 7, subdivision (a), item (i), (ii) or (iii) as
47 determined by a school district or by an independent third party pursuant

1 to section 15-2403, subsection J, the qualified student may use the
2 following additional services:

3 (i) Educational therapies from a licensed or accredited
4 practitioner or provider, including and up to any amount not covered by
5 insurance if the expense is partially paid by a health insurance policy
6 for the qualified student.

7 (ii) A licensed or accredited paraprofessional or educational aide.

8 (iii) Tuition for vocational and life skills education approved by
9 the department.

10 (iv) Associated goods and services that include educational and
11 psychological evaluations, assistive technology rentals and braille
12 translation goods and services approved by the department.

13 (d) Tutoring or teaching services provided [EITHER] by an
14 individual who is [AT LEAST EIGHTEEN YEARS OF AGE, HAS A VALID FINGERPRINT
15 CLEARANCE CARD PURSUANT TO TITLE 41, CHAPTER 12, ARTICLE 3.1 AND IS] not
16 subject to disciplinary action by the state board of education for immoral
17 or unprofessional conduct pursuant to section 15-505 or 15-534.04 or [BY]
18 a facility that is accredited by a state, regional or national accrediting
19 organization. The department shall ensure any individual who provides
20 tutoring or teaching services to one or more qualified students pursuant
21 to this subdivision ~~[is not subject to disciplinary action by the state~~
22 ~~board of education]~~ [MEETS THE REQUIREMENTS PRESCRIBED BY THIS
23 SUBDIVISION]. The department shall also remove any individual who is
24 subject to disciplinary action by the state board of education [OR WHO
25 FAILS TO MAINTAIN A VALID FINGERPRINT CLEARANCE CARD PURSUANT TO TITLE 41,
26 CHAPTER 12, ARTICLE 3.1] from all platforms that the department provides
27 to parents and qualified students for the purchase of goods or educational
28 services using account monies.

29 (e) Curricula and supplementary materials.

30 (f) Tuition or fees for a nonpublic online learning program.

31 (g) Fees for a nationally standardized norm-referenced achievement
32 test, an advanced placement examination or any exams related to college or
33 university admission.

34 (h) Tuition or fees at an eligible postsecondary institution.

35 (i) Textbooks required by an eligible postsecondary institution.

36 (j) Fees to manage the Arizona empowerment scholarship account.

37 (k) Services provided by a public school, including individual
38 classes and extracurricular programs.

39 (l) Insurance or surety bond payments.

40 (m) Uniforms purchased from or through a qualified school.

41 (n) If the qualified student meets the criteria specified in
42 section 15-2401, paragraph 7, subdivision (a), item (i), (ii) or (iii) and
43 if the qualified student is in the second year prior to the final year of
44 a contract executed pursuant to this article, costs associated with an
45 annual education plan conducted by an independent evaluation team. The
46 department shall prescribe minimum qualifications for independent
47 evaluation teams pursuant to this subdivision and factors that teams must

1 use to determine whether the qualified student shall be eligible to
2 continue to receive monies pursuant to this article through the school
3 year in which the qualified student reaches twenty-two years of age. An
4 independent evaluation team that provides an annual education plan
5 pursuant to this subdivision shall submit a written report that summarizes
6 the results of the evaluation to the parent of the qualified student and
7 to the department on or before July 31. The written report submitted by
8 the independent evaluation team is valid for one year. If the department
9 determines that the qualified student meets the eligibility criteria
10 prescribed in the annual education plan, the qualified student is eligible
11 to continue to receive monies pursuant to this article until the qualified
12 student reaches twenty-two years of age, subject to annual review. A
13 parent may appeal the department's decision pursuant to title 41, chapter
14 6, article 10. As an addendum to a qualified student's final-year
15 contract, the department shall provide the following written information
16 to the parent of the qualified student:

17 (i) That the qualified student will not be eligible to continue to
18 receive monies pursuant to this article unless the results of an annual
19 education plan conducted pursuant to this subdivision demonstrate that the
20 qualified student meets the eligibility criteria prescribed in the annual
21 education plan.

22 (ii) That the parent is entitled to obtain an annual education plan
23 pursuant to this subdivision to determine whether the qualified student
24 meets the eligibility criteria prescribed in the annual education plan.

25 (iii) A list of independent evaluation teams that meet the minimum
26 qualifications prescribed by the department pursuant to this subdivision.

27 (o) Public transportation services in this state, including a
28 commuter pass for the qualified student, or transportation network
29 services as defined in section 28-9551 between the qualified student's
30 residence and a qualified school in which the qualified student is
31 enrolled.

32 (p) Computer hardware and technological devices primarily used for
33 an educational purpose. For the purposes of this subdivision, "computer
34 hardware and technological devices":

35 (i) Includes calculators, personal computers, laptops, tablet
36 devices, microscopes, telescopes and printers.

37 (ii) Does not include entertainment and other primarily
38 noneducational devices, including televisions, telephones, video game
39 consoles and accessories, and home theatre and audio equipment.

40 5. Not file an affidavit of intent to homeschool pursuant to
41 section 15-802, subsection B, paragraph 2 or 3.

42 6. Not use monies deposited in the qualified student's account for
43 any of the following:

44 (a) Computer hardware or other technological devices, except as
45 otherwise allowed under paragraph 4, subdivision (c) or (p) of this
46 subsection.

1 (b) Transportation of the pupil, except for transportation services
2 described in paragraph 4, subdivision (o) of this subsection.

3 [(c) NONEDUCATIONAL ITEMS OR LUXURY GOODS, INCLUDING HOUSEHOLD
4 FURNITURE, FIXTURES, ITEMS THAT ARE NOT PRIMARILY USED FOR EDUCATIONAL
5 PURPOSES, COMMERCIAL APPLIANCES, HOUSEHOLD APPLIANCES, COMMERCIAL
6 MACHINERY, HOUSEHOLD MACHINERY, HOME IMPROVEMENTS, PROPERTY IMPROVEMENTS,
7 JEWELRY, LINGERIE, ADMISSION TO WATER PARKS, ADMISSION TO AMUSEMENT PARKS,
8 HOME SWIMMING POOLS, HOT TUBS, SAUNAS, GIFT CARDS, GIFT CERTIFICATES,
9 OUT-OF-STATE TRAVEL, INTERNATIONAL TRAVEL, OUT-OF-STATE MUSEUMS,
10 INTERNATIONAL MUSEUMS, OUT-OF-STATE EXCURSIONS, INTERNATIONAL EXCURSIONS,
11 CHILD CARE, BABYSITTING, RESTAURANT DINING, HOTELS, LODGING, BOUNCE
12 HOUSES, WATER SLIDES, MOTOR VEHICLES AND MOTORIZED WATERCRAFT.]

13 C. In exchange for the parent's agreement pursuant to subsection B
14 of this section, the department shall transfer from the monies that would
15 otherwise be allocated to a recipient's prior school district, or if the
16 child is currently eligible to attend a preschool program for children
17 with disabilities, a kindergarten program or any of grades one through
18 twelve, the monies that the department determines would otherwise be
19 allocated to a recipient's expected school district of attendance, to the
20 treasurer for deposit into an Arizona empowerment scholarship account an
21 amount that is equivalent to ninety percent of the sum of the base support
22 level and additional assistance prescribed in sections 15-185 and 15-943
23 for that particular student if that student were attending a charter
24 school. [THE DEPARTMENT MAY DEPOSIT IN THE DEPARTMENT OF EDUCATION
25 EMPOWERMENT SCHOLARSHIP ACCOUNT FUND ESTABLISHED BY SUBSECTION D OF THIS
26 SECTION MONIES THAT THE DEPARTMENT WOULD OTHERWISE ALLOCATE TO A QUALIFIED
27 STUDENT'S PRIOR SCHOOL DISTRICT OR EXPECTED SCHOOL DISTRICT OF ATTENDANCE,
28 WHICHEVER APPLIES, AN AMOUNT THAT IS NOT MORE THAN ONE-HALF OF ONE PERCENT
29 OF THE SUM OF THE BASE SUPPORT LEVEL AND ADDITIONAL ASSISTANCE PRESCRIBED
30 IN SECTIONS 15-185 AND 15-943 FOR THE QUALIFIED STUDENT IF THE QUALIFIED
31 STUDENT WERE ATTENDING A CHARTER SCHOOL.]

32 D. The department of education empowerment scholarship account fund
33 is established consisting of monies appropriated by the legislature [AND
34 MONIES DEPOSITED PURSUANT TO SUBSECTION C OF THIS SECTION. THE DEPARTMENT
35 SHALL SEPARATELY ACCOUNT FOR MONIES THAT ARE DEPOSITED PURSUANT TO
36 SUBSECTION C OF THIS SECTION]. The department shall administer the fund.
37 Monies in the fund are subject to legislative appropriation. Monies in
38 the fund shall be used for the department's costs in administering Arizona
39 empowerment scholarship accounts under this chapter[, INCLUDING TECHNOLOGY
40 AND PERSONNEL NECESSARY FOR VERIFYING ELIGIBILITY, REVIEWING EXPENDITURES
41 AND MANAGING ACCOUNTS]. Monies in the fund are exempt from the provisions
42 of section 35-190 relating to lapsing of appropriations. [ON OR BEFORE
43 AUGUST 1 OF EACH YEAR, THE DEPARTMENT SHALL PRESENT TO THE STATE BOARD OF
44 EDUCATION A DETAILED EXPENDITURE PLAN FOR THE FUND. IF THE COSTS TO
45 ADMINISTER THE ARIZONA EMPOWERMENT SCHOLARSHIP ACCOUNTS INCREASE, THE
46 STATE BOARD OF EDUCATION SHALL SUBMIT TO THE STAFF OF THE JOINT
47 LEGISLATIVE BUDGET COMMITTEE AND THE GOVERNOR'S OFFICE OF STRATEGIC

1 PLANNING AND BUDGETING NOT LATER THAN OCTOBER 1 A REPORT THAT EXPLAINS THE
2 INCREASED COSTS AND RECOMMENDS AN INCREASE IN THE AMOUNT OF MONIES THAT
3 ARE DEPOSITED IN THE FUND PURSUANT TO SUBSECTION C OF THIS SECTION.] If
4 the number of Arizona empowerment scholarship accounts significantly
5 increases after fiscal year 2020-2021, the department may request an
6 increase in the amount appropriated to the fund in any subsequent fiscal
7 year in the budget estimate submitted pursuant to section 35-113. The
8 department shall list monies in the fund as a separate line item in [its]
9 [THE DEPARTMENT'S] budget estimate.

10 E. The state treasurer empowerment scholarship account fund is
11 established consisting of monies appropriated by the legislature. The
12 state treasurer shall administer the fund. Monies in the fund shall be
13 used for the state treasurer's costs in administering the Arizona
14 empowerment scholarship accounts under this chapter. If the number of
15 Arizona empowerment scholarship accounts significantly increases after
16 fiscal year 2020-2021, the state treasurer may request an increase in the
17 amount appropriated to the fund in any subsequent fiscal year in the
18 budget estimate submitted pursuant to section 35-113. Monies in the fund
19 are subject to legislative appropriation. Monies in the fund are exempt
20 from the provisions of section 35-190 relating to lapsing of
21 appropriations. The state treasurer shall list monies in the fund as a
22 separate line item in its budget estimate.

23 F. A parent must renew the qualified student's Arizona empowerment
24 scholarship account on an annual basis. The department of education shall
25 verify that the parent's child is a qualified student as defined in
26 section 15-2401 or 15-2401.01 in the year for which the parent seeks to
27 renew the Arizona empowerment scholarship account. This subsection does
28 not require the department to annually verify the child's disability for
29 the purpose of section 15-2401, paragraph 7, subdivision (a), item (i),
30 (ii) or (iii), if applicable.

31 G. Notwithstanding any changes to the student's multidisciplinary
32 evaluation team plan, a student who has previously qualified for an
33 Arizona empowerment scholarship account remains eligible to apply for
34 renewal until the student finishes high school.

35 H. If a parent does not renew the qualified student's Arizona
36 empowerment scholarship account for [a period of three] [ONE] academic
37 [years] [YEAR], the department shall notify the parent that the qualified
38 student's account will be closed in sixty calendar days. The notification
39 must be sent [through] [BY] certified mail, email and telephone, if
40 applicable. The parent has sixty calendar days to renew the qualified
41 student's Arizona empowerment scholarship account. If the parent chooses
42 not to renew or does not respond [in] [WITHIN] sixty calendar days, the
43 department shall close the account and [THE TREASURER SHALL TRANSFER] any
44 remaining monies [shall be returned] to the state [GENERAL FUND].

1 I. A signed agreement under this section constitutes school
2 attendance required by section 15-802.

3 J. A qualified school or a provider of services purchased pursuant
4 to subsection B, paragraph 4 of this section may not share, refund or
5 rebate any Arizona empowerment scholarship account monies with the parent
6 or qualified student in any manner.

7 K. Notwithstanding subsection H of this section, on the qualified
8 student's graduation from a postsecondary institution or after any period
9 of four consecutive years after high school graduation in which the
10 student is not enrolled in an eligible postsecondary institution, but not
11 before this time as long as the account holder continues using a portion
12 of account monies for allowable expenses each year and is in good
13 standing, the qualified student's Arizona empowerment scholarship account
14 shall be closed and any remaining monies shall be returned to the state.

15 L. Monies received pursuant to this article do not constitute
16 taxable income to the parent of the qualified student.

17 [M. BEGINNING IN THE 2027-2028 SCHOOL YEAR, IF THE AMOUNT OF
18 UNEXPENDED AND UNENCUMBERED MONIES REMAINING IN THE ARIZONA EMPOWERMENT
19 SCHOLARSHIP ACCOUNT OF A QUALIFIED STUDENT ON JUNE 30 EXCEEDS THE MAXIMUM
20 PRIOR YEAR CARRYFORWARD, THE TREASURER SHALL TRANSFER THE EXCESS AMOUNT TO
21 THE STATE GENERAL FUND. FOR THE PURPOSES OF THIS SUBSECTION, THE MAXIMUM
22 PRIOR YEAR CARRYFORWARD IS:

23 1. \$50,000 FOR THE ARIZONA EMPOWERMENT SCHOLARSHIP ACCOUNT OF A
24 QUALIFIED STUDENT WHO MEETS ANY OF THE CRITERIA SPECIFIED IN SECTION
25 15-2401, PARAGRAPH 7, SUBDIVISION (a), ITEM (i), (ii) OR (iii).

26 2. \$24,000 FOR THE ARIZONA EMPOWERMENT SCHOLARSHIP ACCOUNT OF A
27 QUALIFIED STUDENT WHO DOES NOT MEET ANY OF THE CRITERIA SPECIFIED IN
28 SECTION 15-2401, PARAGRAPH 7, SUBDIVISION (a), ITEM (i), (ii) OR (iii).]>>

29 <<Sec. 7. Section 15-2403, Arizona Revised Statutes, is amended to
30 read:

31 15-2403. Arizona empowerment scholarship accounts;
32 administration; appeals; risk-based audits; rules;
33 policy handbook

34 A. The treasurer may contract with private financial management
35 firms to manage Arizona empowerment scholarship accounts.

36 B. The department shall conduct or contract for annual audits of
37 Arizona empowerment scholarship accounts to ensure compliance with section
38 15-2402, subsection B, paragraph 4. The department shall also conduct or
39 contract for random, quarterly and annual audits of Arizona empowerment
40 scholarship accounts as needed to ensure compliance with section 15-2402,
41 subsection B, paragraph 4. The department, in consultation with the
42 office of the auditor general, shall develop risk-based auditing
43 procedures for audits conducted pursuant to this subsection.

44 C. The department shall annually review a sample of Arizona
45 empowerment scholarship accounts, selected at random, to determine whether
46 the parent or qualified student is in compliance with the terms of the
47 contract, applicable laws, rules and orders relating to the Arizona

1 empowerment scholarship accounts program. The Arizona empowerment
2 scholarship account of a parent or qualified student who is in good
3 standing may be randomly selected pursuant to this subsection only one
4 time during any five-year period. The department may remove any parent or
5 qualified student from eligibility for an Arizona empowerment scholarship
6 account if the parent or qualified student fails to comply with the terms
7 of the contract or applicable laws, rules or orders or knowingly misuses
8 monies or knowingly fails to comply with the terms of the contract with
9 intent to defraud and shall notify the treasurer. The department shall
10 notify the treasurer to suspend the account of a parent or qualified
11 student and shall notify the parent or qualified student in writing that
12 the account has been suspended and that no further transactions will be
13 allowed or disbursements made. The notification shall specify the reason
14 for the suspension and state that the parent or qualified student has
15 fifteen days, not including weekends, to respond and take corrective
16 action. If the parent or qualified student refuses or fails to contact
17 the department, furnish any information or make any report that may be
18 required for reinstatement within the fifteen-day period, the department
19 may remove the parent or qualified student pursuant to this subsection.

20 D. A parent may appeal to the state board of education any
21 administrative decision the department makes pursuant to this article,
22 including determinations of allowable expenses, removal from the program
23 or enrollment eligibility. The department shall notify the parent in
24 writing that the parent may appeal any administrative decision under this
25 article and the process by which the parent may appeal at the same time
26 the department notifies the parent of an administrative decision under
27 this article. The state board of education shall establish an appeals
28 process, and the department shall post this information on the
29 department's website in the same location as the policy handbook developed
30 pursuant to subsection K of this section.

31 E. A parent may represent himself or herself or designate a
32 representative, not necessarily an attorney, before any appeals hearing
33 held pursuant to this section. Any designated representative who is not
34 an attorney admitted to practice may not charge for any services rendered
35 in connection with the hearing. The fact that a representative
36 participated in the hearing or assisted the account holder is not grounds
37 for reversing any administrative decision or order if the evidence
38 supporting the decision or order is substantial, reliable and probative.

39 F. The state board of education may refer cases of substantial
40 misuse of monies to the attorney general for the purpose of collection or
41 for the purpose of a criminal investigation if the state board of
42 education obtains evidence of fraudulent use of an account.

43 G. The department shall make quarterly transfers ~~[of the amount~~
44 ~~calculated]~~ pursuant to section 15-2402, subsection C to the treasurer for
45 deposit in the Arizona empowerment scholarship account of each qualified
46 student, except the department may make transfers according to another
47 transfer schedule if the department determines a transfer schedule other

1 than quarterly transfers is necessary to operate the Arizona empowerment
2 scholarship account.

3 H. The department shall accept applications between July 1 and June
4 30 of each year. The department shall issue an award letter to eligible
5 applicants within thirty days after receipt of a completed application and
6 all required documentation. If an eligible applicant completes an
7 application in advance for an Arizona empowerment scholarship account to
8 be funded beginning on a later date, the department may enroll the
9 eligible applicant on the later date, except that the department may not
10 enroll the applicant more than two fiscal quarters after the fiscal
11 quarter in which the application is completed or on a date that is after
12 March 31 and before July 1. If an eligible applicant completes an
13 application after March 31 and before July 1, the department shall enroll
14 the applicant on or after July 1. The department shall enroll all other
15 eligible applicants when the department issues an award letter pursuant to
16 this subsection. This subsection does not allow a qualified student to
17 receive monies in an Arizona empowerment scholarship account while the
18 qualified student is enrolled in a school district or charter school. On
19 or before September 1 and November 1 of each year, the department shall
20 furnish to the joint legislative budget committee and the governor's
21 office of strategic planning and budgeting an estimate of the amount
22 required to fund Arizona empowerment scholarship accounts for the
23 following fiscal year. The department shall include in its budget request
24 for the following fiscal year the amount estimated pursuant to section
25 15-2402, subsection C for each qualified student.

26 I. The state board of education may adopt rules and policies
27 necessary to administer Arizona empowerment scholarship accounts,
28 including rules and policies:

29 1. For establishing an appeals process pursuant to subsection D of
30 this section.

31 2. For conducting or contracting for examinations of the use of
32 account monies, consistent with subsection L of this section.

33 3. For conducting or contracting for random, quarterly and annual
34 reviews of accounts.

35 4. For establishing or contracting for the establishment of an
36 online anonymous fraud reporting service.

37 5. For establishing an anonymous telephone hotline for fraud
38 reporting.

39 6. That require a surety bond or insurance for account holders.

40 J. The department shall contract with an independent third party
41 for the purposes of determining whether a qualified student is eligible to
42 receive educational therapies or services pursuant to section 15-2402,
43 subsection B, paragraph 4, subdivision (c). If during any period on or
44 after January 1, 2023 the department fails to ensure that a contract with
45 an independent third party is in effect, during that period:

46 1. The county school superintendent of each county may approve a
47 list of independent third parties within the county whose evaluation may

1 be used to determine whether a qualified student who resides within the
2 county is eligible to receive educational therapies or services pursuant
3 to section 15-2402, subsection B, paragraph 4, subdivision (c).

4 2. If the county school superintendent of a county does not provide
5 a list of approved independent third parties within ninety days after the
6 beginning of any period during which the department does not have a
7 contract with an independent third party in effect as described in this
8 subsection, the parent of a qualified student who resides within the
9 county has the right to obtain an independent educational evaluation from
10 a qualified examiner to determine whether the qualified student is
11 eligible to receive educational therapies or services pursuant to section
12 15-2402, subsection B, paragraph 4, subdivision (c). The expense for an
13 educational evaluation undertaken pursuant to this paragraph shall be
14 provided by the school district within which the qualified student resides
15 and that serves the grade level of the qualified student. For the
16 purposes of this paragraph, "qualified examiner" means a licensed
17 physician, psychiatrist or psychologist.

18 K. On or before July 1 of each year, the department shall develop
19 an applicant and participant handbook that includes information relating
20 to policies and processes of Arizona empowerment scholarship accounts.
21 The policy handbook shall comply with the rules adopted by the state board
22 of education pursuant to this section. The department shall post the
23 handbook on the department's website.

24 L. The department shall:

25 1. Establish and maintain an online database of allowable and
26 disallowed categories of expenses and provide a link to the database on
27 the department's website.

28 2. Allow the use of account monies to reimburse the parent of a
29 qualified student or a qualified student for the purchase of a good or
30 educational service that is an allowable expense pursuant to section
31 15-2402, subsection B.

32 M. Except for cases in which the attorney general determines that a
33 parent or account holder has committed fraud, any expenditure from an
34 Arizona empowerment scholarship account for a purchase that the department
35 determines is not an allowable expense pursuant to section 15-2402 and
36 that is subsequently repaid by the parent or account holder shall be
37 credited back to the Arizona empowerment scholarship account balance
38 within thirty days after the receipt of payment.

39 N. If, in response to an appeal of an administrative decision made
40 by the department, the state board of education issues a stay of an
41 Arizona empowerment scholarship account suspension pursuant to rules
42 adopted by the board, the department may not withhold funding or contract
43 renewal for the account holder because of the appealed administrative
44 decision during the stay unless directed by the board to do so.>>

45 <<Sec. 8. Section 15-2404, Arizona Revised Statutes, is amended to
46 read:

1 15-2404. State control over nonpublic schools; prohibition;
2 application

3 A. This chapter does not [~~permit~~] [ALLOW] any government agency to
4 exercise control or supervision over any nonpublic school or homeschool.

5 B. A qualified school that accepts a payment from a parent pursuant
6 to this chapter is not an agent of the state or federal government.

7 C. [EXCEPT AS PROVIDED IN SECTION 15-106 AND SECTION 15-2402,
8 SUBSECTION B.] a qualified school shall not be required to alter its
9 creed, practices, admissions policy or curriculum in order to accept
10 students whose parents pay tuition or fees from an [ARIZONA] empowerment
11 scholarship account pursuant to this chapter in order to participate as a
12 qualified school.

13 D. In any legal proceeding challenging the application of this
14 chapter to a qualified school, the state bears the burden of establishing
15 that the law is necessary and does not impose any undue burden on
16 qualified schools.>>

17 <<Sec. 9. Section 41-619.51, Arizona Revised Statutes, is amended
18 to read:

19 41-619.51. Definitions

20 In this article, unless the context otherwise requires:

21 1. "Agency" means the supreme court, the department of economic
22 security, the department of child safety, the department of education, the
23 department of health services, the department of juvenile corrections, the
24 department of emergency and military affairs, the department of public
25 safety, the department of transportation, the state real estate
26 department, the department of insurance and financial institutions, the
27 Arizona game and fish department, the Arizona department of agriculture,
28 the board of examiners of nursing care institution administrators and
29 assisted living facility managers, the state board of dental examiners,
30 the Arizona state board of pharmacy, the board of physical therapy, the
31 state board of psychologist examiners, the board of athletic training, the
32 board of occupational therapy examiners, the state board of podiatry
33 examiners, the acupuncture board of examiners, the state board of
34 technical registration, the board of massage therapy, the board of
35 behavioral health examiners or the Arizona department of housing.

36 2. "Board" means the board of fingerprinting.

37 3. "Central registry exception" means notification to the
38 department of economic security, the department of child safety or the
39 department of health services, as appropriate, pursuant to section
40 41-619.57 that the person is not disqualified because of a central
41 registry check conducted pursuant to section 8-804.

42 4. "Expedited review" means an examination, in accordance with
43 board rule, of the documents an applicant submits by the board or its
44 hearing officer without the applicant being present.

45 5. "Good cause exception" means the issuance of a fingerprint
46 clearance card to an employee pursuant to section 41-619.55.

1 6. "Person" means a person who is required to be fingerprinted
2 pursuant to this article or who is subject to a central registry check and
3 any of the following:
4 (a) Section 3-314.
5 (b) Section 8-105.
6 (c) Section 8-322.
7 (d) Section 8-463.
8 (e) Section 8-509.
9 (f) Section 8-802.
10 (g) Section 8-804.
11 ~~[(h) SECTION 15-154.]~~
12 ~~[(i)]~~ ~~[(i)]~~ Section 15-183.
13 ~~[(j)]~~ ~~[(j)]~~ Section 15-503.
14 ~~[(k)]~~ ~~[(k)]~~ Section 15-512.
15 ~~[(l)]~~ ~~[(l)]~~ Section 15-534.
16 ~~[(m)]~~ ~~[(m)]~~ Section 15-763.01.
17 ~~[(n)]~~ ~~[(n)]~~ Section 15-782.02.
18 ~~[(o)]~~ ~~[(o)]~~ Section 15-1330.
19 ~~[(p)]~~ ~~[(p)]~~ Section 15-1881.
20 ~~[(q) SECTION 15-2402.]~~
21 ~~[(r)]~~ ~~[(r)]~~ Section 17-215.
22 ~~[(s)]~~ ~~[(s)]~~ Section 28-3228.
23 ~~[(t)]~~ ~~[(t)]~~ Section 28-3413.
24 ~~[(u)]~~ ~~[(u)]~~ Section 32-122.02.
25 ~~[(v)]~~ ~~[(v)]~~ Section 32-122.05.
26 ~~[(w)]~~ ~~[(w)]~~ Section 32-122.06.
27 ~~[(x)]~~ ~~[(x)]~~ Section 32-823.
28 ~~[(y)]~~ ~~[(y)]~~ Section 32-1232.
29 ~~[(z)]~~ ~~[(z)]~~ Section 32-1276.01.
30 ~~[(aa)]~~ ~~[(aa)]~~ Section 32-1284.
31 ~~[(bb)]~~ ~~[(bb)]~~ Section 32-1297.01.
32 ~~[(cc)]~~ ~~[(cc)]~~ Section 32-1904.
33 ~~[(dd)]~~ ~~[(dd)]~~ Section 32-1941.
34 ~~[(ee)]~~ ~~[(ee)]~~ Section 32-1982.
35 ~~[(ff)]~~ ~~[(ff)]~~ Section 32-2022.
36 ~~[(gg)]~~ ~~[(gg)]~~ Section 32-2063.
37 ~~[(hh)]~~ ~~[(hh)]~~ Section 32-2108.01.
38 ~~[(ii)]~~ ~~[(ii)]~~ Section 32-2123.
39 ~~[(jj)]~~ ~~[(jj)]~~ Section 32-2371.
40 ~~[(kk)]~~ ~~[(kk)]~~ Section 32-3271.
41 ~~[(ll)]~~ ~~[(ll)]~~ Section 32-3430.
42 ~~[(mm)]~~ ~~[(mm)]~~ Section 32-3620.
43 ~~[(nn)]~~ ~~[(nn)]~~ Section 32-3668.
44 ~~[(oo)]~~ ~~[(oo)]~~ Section 32-3669.
45 ~~[(pp)]~~ ~~[(pp)]~~ Section 32-3922.
46 ~~[(qq)]~~ ~~[(qq)]~~ Section 32-3924.
47 ~~[(rr)]~~ ~~[(rr)]~~ Section 32-4128.

1 [~~(qq)~~] [(ss)] Section 32-4222.
2 [~~(rr)~~] [(tt)] Section 36-113.
3 [~~(ss)~~] [(uu)] Section 36-207.
4 [~~(tt)~~] [(vv)] Section 36-411.
5 [~~(uu)~~] [(ww)] Section 36-425.03.
6 [~~(vv)~~] [(xx)] Section 36-446.04.
7 [~~(ww)~~] [(yy)] Section 36-594.01.
8 [~~(xx)~~] [(zz)] Section 36-594.02.
9 [~~(yy)~~] [(aaa)] Section 36-766.01.
10 [~~(zz)~~] [(bbb)] Section 36-882.
11 [~~(aaa)~~] [(ccc)] Section 36-883.02.
12 [~~(bbb)~~] [(ddd)] Section 36-897.01.
13 [~~(ccc)~~] [(eee)] Section 36-897.03.
14 [~~(ddd)~~] [(fff)] Section 36-1940.
15 [~~(eee)~~] [(ggg)] Section 36-1940.01.
16 [~~(fff)~~] [(hhh)] Section 36-2069.
17 [~~(ggg)~~] [(iii)] Section 36-3008.
18 [~~(hhh)~~] [(jjj)] Section 41-619.53.
19 [~~(iii)~~] [(kkk)] Section 41-1964.
20 [~~(jjj)~~] [(lll)] Section 41-1967.01.
21 [~~(kkk)~~] [(mmm)] Section 41-1968.
22 [~~(lll)~~] [(nnn)] Section 41-1969.
23 [~~(mmm)~~] [(ooo)] Section 41-2814.
24 [~~(nnn)~~] [(ppp)] Section 41-4025.
25 [~~(ooo)~~] [(qqq)] Section 46-141, subsection A or B.
26 [~~(ppp)~~] [(rrr)] Section 46-321.>>
27 <<Sec. 10. Section 41-1750, Arizona Revised Statutes, is amended to
28 read:
29 41-1750. Central state repository; department of public
30 safety; duties; funds; accounts; definitions
31 A. The department is responsible for the effective operation of the
32 central state repository in order to collect, store and disseminate
33 complete and accurate Arizona criminal history records and related
34 criminal justice information. The department may procure criminal history
35 records and related criminal justice information for violations that are
36 not listed in this section. The department shall:
37 1. Procure from all criminal justice agencies in this state
38 accurate and complete personal identification data, fingerprints, charges,
39 process control numbers and dispositions and such other information as may
40 be pertinent to all persons who have been charged with, arrested for,
41 convicted of or summoned to court as a criminal defendant for any of the
42 following:
43 (a) A felony offense or an offense involving domestic violence as
44 defined in section 13-3601.
45 (b) A violation of title 13, chapter 14 or title 28, chapter 4.
46 (c) An offense listed in:
47 (i) Section 32-2422, subsection A, paragraph 4.

1 (ii) Section 32-2441, paragraph 4.
2 (iii) Section 32-2612, subsection A, paragraph 4.
3 (iv) Section 32-2622, subsection A, paragraph 4.
4 (v) Section 41-1758.03, subsections B and C.
5 (vi) Section 41-1758.07, subsections B and C.
6 2. Collect information concerning the number and nature of offenses
7 known to have been committed in this state and of the legal steps taken in
8 connection with these offenses, such other information that is useful in
9 the study of crime and in the administration of criminal justice and all
10 other information deemed necessary to operate the statewide uniform crime
11 reporting program and to cooperate with the federal government uniform
12 crime reporting program.
13 3. Collect information concerning criminal offenses that manifest
14 evidence of prejudice based on race, color, religion, national origin,
15 sexual orientation, gender, antisemitism or disability.
16 4. Cooperate with the central state repositories in other states
17 and with the appropriate agency of the federal government in the exchange
18 of information pertinent to violators of the law.
19 5. Ensure the rapid exchange of information concerning the
20 commission of crime and the detection of violators of the law among the
21 criminal justice agencies of other states and of the federal government.
22 6. Furnish assistance to peace officers throughout this state in
23 crime scene investigation for the detection of latent fingerprints and in
24 the comparison of latent fingerprints.
25 7. Conduct periodic operational audits of the central state
26 repository and of a representative sample of other agencies that
27 contribute records to or receive criminal justice information from the
28 central state repository or through the Arizona criminal justice
29 information system.
30 8. Establish and enforce the necessary physical and system
31 safeguards to ensure that the criminal justice information maintained and
32 disseminated by the central state repository or through the Arizona
33 criminal justice information system is appropriately protected from
34 unauthorized inquiry, modification, destruction or dissemination as
35 required by this section.
36 9. Aid and encourage coordination and cooperation among criminal
37 justice agencies through the statewide and interstate exchange of criminal
38 justice information.
39 10. Provide training and proficiency testing on the use of criminal
40 justice information to agencies receiving information from the central
41 state repository or through the Arizona criminal justice information
42 system.
43 11. Operate and maintain the Arizona automated fingerprint
44 identification system established by section 41-2411.
45 12. Provide criminal history record information to the
46 fingerprinting division for the purpose of screening applicants for
47 fingerprint clearance cards.

1 B. The director may establish guidelines for the submission and
2 retention of criminal justice information as deemed useful for the study
3 or prevention of crime and for the administration of criminal justice.

4 C. Criminal justice agencies may provide criminal history records
5 and related criminal justice information for violations that are not
6 listed in this section. Except for the requirements listed in subsection
7 U of this section, the chief officers of criminal justice agencies of this
8 state or its political subdivisions shall provide to the central state
9 repository fingerprints and information concerning personal identification
10 data, descriptions, crimes for which persons are arrested, process control
11 numbers and dispositions and such other information, including other
12 biometric data, as may be pertinent to all persons who have been charged
13 with, arrested for, convicted of or summoned to court as criminal
14 defendants for any of the following:

15 1. Felony offenses or offenses involving domestic violence as
16 defined in section 13-3601.

17 2. Violations of title 13, chapter 14 or title 28, chapter 4 that
18 have occurred in this state.

19 3. An offense listed in:

20 (a) Section 32-2422, subsection A, paragraph 4.

21 (b) Section 32-2441, paragraph 4.

22 (c) Section 32-2612, subsection A, paragraph 4.

23 (d) Section 32-2622, subsection A, paragraph 4.

24 (e) Section 41-1758.03, subsections B and C.

25 (f) Section 41-1758.07, subsections B and C.

26 D. The chief officers of law enforcement agencies of this state or
27 its political subdivisions shall provide to the department such
28 information as necessary to operate the statewide uniform crime reporting
29 program and to cooperate with the federal government uniform crime
30 reporting program.

31 E. The chief officers of criminal justice agencies of this state or
32 its political subdivisions shall comply with the training and proficiency
33 testing guidelines as required by the department to comply with the
34 federal national crime information center mandates.

35 F. The chief officers of criminal justice agencies of this state or
36 its political subdivisions also shall provide to the department
37 information concerning crimes that manifest evidence of prejudice based on
38 race, color, religion, national origin, sexual orientation, gender,
39 antisemitism or disability.

40 G. The director shall authorize the exchange of criminal justice
41 information between the central state repository, or through the Arizona
42 criminal justice information system, whether directly or through any
43 intermediary, only as follows:

44 1. With criminal justice agencies of the federal government, Indian
45 tribes, this state or its political subdivisions and other states, on
46 request by the chief officers of such agencies or their designated
47 representatives, specifically for the purposes of the administration of

1 criminal justice and for evaluating the fitness of current and prospective
2 criminal justice employees. Fingerprints submitted pursuant to this
3 paragraph may be searched through the department and the federal bureau of
4 investigation to conduct criminal history records checks. The department
5 may conduct criminal history records checks through state and federal rap
6 back services for the purpose of updating the status of current criminal
7 justice employees or volunteers and may notify the criminal justice agency
8 of the results of the records check. The department is authorized to
9 submit fingerprints to the federal bureau of investigation to be retained
10 for the purpose of being searched by future submissions to the federal
11 bureau of investigation, including latent fingerprint searches. The
12 department may retain fingerprints submitted pursuant to this paragraph
13 for the purpose of being searched by future submissions to the department,
14 including latent fingerprint searches.

15 2. With any noncriminal justice agency pursuant to a statute,
16 ordinance or executive order that specifically authorizes the noncriminal
17 justice agency to receive criminal history record information for the
18 purpose of evaluating the fitness of current or prospective licensees,
19 employees, contract employees or volunteers, on submission of the
20 subject's fingerprints and the prescribed fee. Each statute, ordinance,
21 or executive order that authorizes noncriminal justice agencies to receive
22 criminal history record information for these purposes shall identify the
23 specific categories of licensees, employees, contract employees or
24 volunteers and shall require that fingerprints of the specified
25 individuals be submitted in conjunction with such requests for criminal
26 history record information. Fingerprints submitted pursuant to this
27 paragraph may be searched through the department and the federal bureau of
28 investigation to conduct criminal history records checks. The department
29 may conduct criminal history records checks through state and federal rap
30 back services for the purpose of updating the status of current licensees,
31 employees, contract employees or volunteers and may notify the noncriminal
32 justice agency of the results of the records check. The department is
33 authorized to submit fingerprints to the federal bureau of investigation
34 to be retained for the purpose of being searched by future submissions to
35 the federal bureau of investigation, including latent fingerprint
36 searches. The department is authorized to retain fingerprints submitted
37 pursuant to this paragraph for the purpose of being searched by future
38 submissions to the department, including latent fingerprint searches.

39 3. With the board of fingerprinting for the purpose of conducting
40 good cause exceptions pursuant to section 41-619.55 and central registry
41 exceptions pursuant to section 41-619.57.

42 4. With any individual for any lawful purpose on submission of the
43 subject of record's fingerprints and the prescribed fee.

44 5. With the governor, if the governor elects to become actively
45 involved in the investigation of criminal activity or the administration
46 of criminal justice in accordance with the governor's constitutional duty

1 to ensure that the laws are faithfully executed or as needed to carry out
2 the other responsibilities of the governor's office.

3 6. With regional computer centers that maintain authorized
4 computer-to-computer interfaces with the department, that are criminal
5 justice agencies or under the management control of a criminal justice
6 agency and that are established by a statute, ordinance or executive order
7 to provide automated data processing services to criminal justice agencies
8 specifically for the purposes of the administration of criminal justice or
9 evaluating the fitness of regional computer center employees who have
10 access to the Arizona criminal justice information system and the national
11 crime information center system.

12 7. With an individual who asserts a belief that criminal history
13 record information relating to the individual is maintained by an agency
14 or in an information system in this state that is subject to this section.
15 On submission of fingerprints, the individual may review this information
16 for the purpose of determining its accuracy and completeness by making
17 application to the agency operating the system. Rules adopted under this
18 section shall include provisions for administrative review and necessary
19 correction of any inaccurate or incomplete information. The review and
20 challenge process authorized by this paragraph is limited to criminal
21 history record information.

22 8. With individuals and agencies pursuant to a specific agreement
23 with a criminal justice agency to provide services required for the
24 administration of criminal justice pursuant to that agreement if the
25 agreement specifically authorizes access to data, limits the use of data
26 to purposes for which given and ensures the security and confidentiality
27 of the data consistent with this section.

28 9. With individuals and agencies for the express purpose of
29 research, evaluative or statistical activities pursuant to an agreement
30 with a criminal justice agency if the agreement specifically authorizes
31 access to data, limits the use of data to research, evaluative or
32 statistical purposes and ensures the confidentiality and security of the
33 data consistent with this section.

34 10. With the auditor general for audit purposes.

35 11. With central state repositories of other states for noncriminal
36 justice purposes for dissemination in accordance with the laws of those
37 states.

38 12. On submission of the fingerprint card, with the department of
39 child safety and a tribal social services agency to provide criminal
40 history record information on prospective adoptive parents for the purpose
41 of conducting the preadoption certification investigation under title 8,
42 chapter 1, article 1 if the department of economic security is conducting
43 the investigation, or with an agency or a person appointed by the court,
44 if the agency or person is conducting the investigation. Information
45 received under this paragraph shall only be used for the purposes of the
46 preadoption certification investigation.

1 13. With the department of child safety, a tribal social services
2 agency and the superior court for the purpose of evaluating the fitness of
3 custodians or prospective custodians of juveniles, including parents,
4 relatives and prospective guardians. Information received under this
5 paragraph shall only be used for the purposes of that evaluation. The
6 information shall be provided on submission of either:

7 (a) The fingerprint card.

8 (b) The name, date of birth and social security number of the
9 person.

10 14. On submission of a fingerprint card, provide criminal history
11 record information to the superior court for the purpose of evaluating the
12 fitness of investigators appointed under section 14-5303 or 14-5407,
13 guardians appointed under section 14-5206 or 14-5304 or conservators
14 appointed under section 14-5401.

15 15. With the supreme court to provide criminal history record
16 information on prospective fiduciaries pursuant to section 14-5651.

17 16. With the department of juvenile corrections to provide criminal
18 history record information pursuant to section 41-2814.

19 17. On submission of the fingerprint card, provide criminal history
20 record information to the Arizona peace officer standards and training
21 board or a board certified law enforcement academy to evaluate the fitness
22 of prospective cadets.

23 18. With the internet sex offender website database established
24 pursuant to section 13-3827.

25 19. With licensees of the United States nuclear regulatory
26 commission for the purpose of determining whether an individual should be
27 granted unescorted access to the protected area of a commercial nuclear
28 generating station on submission of the subject of record's fingerprints
29 and the prescribed fee.

30 20. With the state board of education for the purpose of evaluating
31 the fitness of a certificated educator, an applicant for a teaching or
32 administrative certificate or a noncertificated person as defined in
33 section 15-505 if the state board of education or its employees or agents
34 have reasonable suspicion that the educator or person engaged in conduct
35 that would be a criminal violation of the laws of this state or was
36 involved in immoral or unprofessional conduct or that the applicant
37 engaged in conduct that would warrant disciplinary action if the applicant
38 were certificated at the time of the alleged conduct. The information
39 shall be provided on the submission of either:

40 (a) The fingerprint card.

41 (b) The name, date of birth and social security number of the
42 person.

43 21. With each school district and charter school in this state [AND
44 WITH EACH QUALIFIED SCHOOL THAT ACCEPTS PAYMENT FROM THE PARENT OF ONE OR
45 MORE QUALIFIED STUDENTS PURSUANT TO TITLE 15, CHAPTER 19]. The department
46 of education and the state board for charter schools shall provide the
47 department of public safety with a current list of email addresses for

1 each school district[,] [~~and~~] charter school [AND QUALIFIED SCHOOL] in
2 this state and shall periodically provide the department of public safety
3 with updated email addresses. If the department of public safety is
4 notified that a person who is required to have a fingerprint clearance
5 card to be employed by or to engage in volunteer activities at a school
6 district[,] [~~or~~] charter school [OR QUALIFIED SCHOOL] has been arrested
7 for or convicted of an offense listed in section 41-1758.03, subsection B
8 or has been arrested for or convicted of an offense that amounts to
9 unprofessional conduct under section 15-550, the department of public
10 safety shall notify each school district[,] [~~and~~] charter school [AND
11 QUALIFIED SCHOOL] in this state that the person's fingerprint clearance
12 card has been suspended or revoked.

13 22. With a tribal social services agency and the department of
14 child safety as provided by law, which currently is the Adam Walsh child
15 protection and safety act of 2006 (42 United States Code section 16961),
16 for the purposes of investigating or responding to reports of child abuse,
17 neglect or exploitation. Information received pursuant to this paragraph
18 from the national crime information center, the interstate identification
19 index and the Arizona criminal justice information system network shall
20 only be used for the purposes of investigating or responding as prescribed
21 in this paragraph. The information shall be provided on submission to the
22 department of public safety of either:

23 (a) The fingerprints of the person being investigated.

24 (b) The name, date of birth and social security number of the
25 person.

26 23. With a nonprofit organization that interacts with children or
27 vulnerable adults for the lawful purpose of evaluating the fitness of all
28 current and prospective employees, contractors and volunteers of the
29 organization. The criminal history record information shall be provided
30 on submission of the applicant's fingerprint card and the prescribed fee.
31 Fingerprints submitted pursuant to this paragraph may be searched by the
32 department to conduct state criminal history records checks.

33 24. With the superior court for the purpose of determining an
34 individual's eligibility for substance abuse and treatment courts in a
35 family or juvenile case.

36 25. With the governor to provide criminal history record
37 information on prospective gubernatorial nominees, appointees and
38 employees as provided by law.

39 H. The director shall adopt rules necessary to execute this
40 section.

41 I. The director, in the manner prescribed by law, shall remove and
42 destroy records that the director determines are no longer of value in the
43 detection or prevention of crime.

44 J. The director shall establish a fee in an amount necessary to
45 cover the cost of federal noncriminal justice fingerprint processing for
46 criminal history record information checks that are authorized by law for
47 noncriminal justice employment, licensing or other lawful purposes. An

1 additional fee may be charged by the department for state noncriminal
2 justice fingerprint processing. Fees submitted to the department for
3 state noncriminal justice fingerprint processing are not refundable.

4 K. The director shall establish a fee in an amount necessary to
5 cover the cost of processing copies of department reports, eight by ten
6 inch black and white photographs or eight by ten inch color photographs of
7 traffic accident scenes.

8 L. Except as provided in subsection O of this section, each agency
9 authorized by this section may charge a fee, in addition to any other fees
10 prescribed by law, in an amount necessary to cover the cost of state and
11 federal noncriminal justice fingerprint processing for criminal history
12 record information checks that are authorized by law for noncriminal
13 justice employment, licensing or other lawful purposes.

14 M. A fingerprint account within the records processing fund is
15 established for the purpose of separately accounting for the collection
16 and payment of fees for noncriminal justice fingerprint processing by the
17 department. Monies collected for this purpose shall be credited to the
18 account, and payments by the department to the United States for federal
19 noncriminal justice fingerprint processing shall be charged against the
20 account. Monies in the account not required for payment to the United
21 States shall be used by the department in support of the department's
22 noncriminal justice fingerprint processing duties. At the end of each
23 fiscal year, any balance in the account not required for payment to the
24 United States or to support the department's noncriminal justice
25 fingerprint processing duties reverts to the state general fund.

26 N. A records processing fund is established for the purpose of
27 separately accounting for the collection and payment of fees for
28 department reports and photographs of traffic accident scenes processed by
29 the department. Monies collected for this purpose shall be credited to
30 the fund and shall be used by the department in support of functions
31 related to providing copies of department reports and photographs. At the
32 end of each fiscal year, any balance in the fund not required for support
33 of the functions related to providing copies of department reports and
34 photographs reverts to the state general fund.

35 O. The department of child safety may pay from appropriated monies
36 the cost of federal fingerprint processing or federal criminal history
37 record information checks that are authorized by law for employees and
38 volunteers of the department, guardians pursuant to section 8-453,
39 subsection A, paragraph 6, the licensing of foster parents or the
40 certification of adoptive parents.

41 P. The director shall adopt rules that provide for:

42 1. The collection and disposition of fees pursuant to this section.

43 2. The refusal of service to those agencies that are delinquent in
44 paying these fees.

45 Q. The director shall ensure that the following limitations are
46 observed regarding dissemination of criminal justice information obtained

1 from the central state repository or through the Arizona criminal justice
2 information system:

3 1. Any criminal justice agency that obtains criminal justice
4 information from the central state repository or through the Arizona
5 criminal justice information system assumes responsibility for the
6 security of the information and shall not secondarily disseminate this
7 information to any individual or agency not authorized to receive this
8 information directly from the central state repository or originating
9 agency.

10 2. Dissemination to an authorized agency or individual may be
11 accomplished by a criminal justice agency only if the dissemination is for
12 criminal justice purposes in connection with the prescribed duties of the
13 agency and not in violation of this section.

14 3. Criminal history record information disseminated to noncriminal
15 justice agencies or to individuals shall be used only for the purposes for
16 which it was given. Secondary dissemination is prohibited unless
17 otherwise authorized by law.

18 4. The existence or nonexistence of criminal history record
19 information shall not be confirmed to any individual or agency not
20 authorized to receive the information itself.

21 5. Criminal history record information to be released for
22 noncriminal justice purposes to agencies of other states shall only be
23 released to the central state repositories of those states for
24 dissemination in accordance with the laws of those states.

25 6. Criminal history record information shall be released to
26 noncriminal justice agencies of the federal government pursuant to the
27 terms of the federal security clearance information act (P.L. 99-169).

28 R. This section and the rules adopted under this section apply to
29 all agencies and individuals collecting, storing or disseminating criminal
30 justice information processed by manual or automated operations if the
31 collection, storage or dissemination is funded in whole or in part with
32 monies made available by the law enforcement assistance administration
33 after July 1, 1973, pursuant to title I of the crime control act of 1973,
34 and to all agencies that interact with or receive criminal justice
35 information from or through the central state repository and through the
36 Arizona criminal justice information system.

37 S. This section does not apply to criminal history record
38 information contained in:

39 1. Posters, arrest warrants, announcements or lists for identifying
40 or apprehending fugitives or wanted persons.

41 2. Original records of entry such as police blotters maintained by
42 criminal justice agencies, compiled chronologically and required by law or
43 long-standing custom to be made public if these records are organized on a
44 chronological basis.

45 3. Transcripts or records of judicial proceedings if released by a
46 court or legislative or administrative proceedings.

47 4. Announcements of executive clemency or pardon.

1 5. Computer databases, other than the Arizona criminal justice
2 information system, that are specifically designed for community
3 notification of an offender's presence in the community pursuant to
4 section 13-3825 or for public informational purposes authorized by section
5 13-3827.

6 T. This section does not prevent a criminal justice agency from
7 disclosing to the public criminal history record information that is
8 reasonably contemporaneous to the event for which an individual is
9 currently within the criminal justice system, including information noted
10 on traffic accident reports concerning citations, blood alcohol tests or
11 arrests made in connection with the traffic accident being investigated.

12 U. In order to ensure that complete and accurate criminal history
13 record information is maintained and disseminated by the central state
14 repository:

15 1. The booking agency shall take legible ten-print fingerprints of
16 all persons who are arrested for offenses listed in subsection C of this
17 section. The booking agency shall obtain a process control number and
18 provide to the person fingerprinted a document that indicates proof of the
19 fingerprinting and that informs the person that the document must be
20 presented to the court.

21 2. Except as provided in paragraph 3 of this subsection, if a
22 person is summoned to court as a result of an indictment or complaint for
23 an offense listed in subsection C of this section, the court shall order
24 the person to appear before the county sheriff and provide legible
25 ten-print fingerprints. The county sheriff shall obtain a process control
26 number and provide a document to the person fingerprinted that indicates
27 proof of the fingerprinting and that informs the person that the document
28 must be presented to the court. For the purposes of this paragraph,
29 "summoned" includes a written promise to appear by the defendant on a
30 uniform traffic ticket and complaint.

31 3. If a person is arrested for a misdemeanor offense listed in
32 subsection C of this section by a city or town law enforcement agency, the
33 person shall appear before the law enforcement agency that arrested the
34 defendant and provide legible ten-print fingerprints. The law enforcement
35 agency shall obtain a process control number and provide a document to the
36 person fingerprinted that indicates proof of the fingerprinting and that
37 informs the person that the document must be presented to the court.

38 4. The mandatory fingerprint compliance form shall contain the
39 following information:

40 (a) Whether ten-print fingerprints have been obtained from the
41 person.

42 (b) Whether a process control number was obtained.

43 (c) The offense or offenses for which the process control number
44 was obtained.

45 (d) Any report number of the arresting authority.

1 (e) Instructions on reporting for ten-print fingerprinting,
2 including available times and locations for reporting for ten-print
3 fingerprinting.

4 (f) Instructions that direct the person to provide the form to the
5 court at the person's next court appearance.

6 5. Within ten days after a person is fingerprinted, the arresting
7 authority or agency that took the fingerprints shall forward the
8 fingerprints to the department in the manner or form required by the
9 department.

10 6. On the issuance of a summons for a defendant who is charged with
11 an offense listed in subsection C of this section, the summons shall
12 direct the defendant to provide ten-print fingerprints to the appropriate
13 law enforcement agency.

14 7. At the initial appearance or on the arraignment of a summoned
15 defendant who is charged with an offense listed in subsection C of this
16 section, if the person does not present a completed mandatory fingerprint
17 compliance form to the court or if the court has not received the process
18 control number, the court shall order that within twenty calendar days the
19 defendant be ten-print fingerprinted at a designated time and place by the
20 appropriate law enforcement agency.

21 8. If the defendant fails to present a completed mandatory
22 fingerprint compliance form or if the court has not received the process
23 control number, the court, on its own motion, may remand the defendant
24 into custody for ten-print fingerprinting. If otherwise eligible for
25 release, the defendant shall be released from custody after being
26 ten-print fingerprinted.

27 9. In every criminal case in which the defendant is incarcerated or
28 fingerprinted as a result of the charge, an originating law enforcement
29 agency or prosecutor, within forty days of the disposition, shall advise
30 the central state repository of all dispositions concerning the
31 termination of criminal proceedings against an individual arrested for an
32 offense specified in subsection C of this section. This information shall
33 be submitted on a form or in a manner required by the department.

34 10. Dispositions resulting from formal proceedings in a court
35 having jurisdiction in a criminal action against an individual who is
36 arrested for an offense specified in subsection C of this section or
37 section 8-341, subsection Q, paragraph 3 shall be reported to the central
38 state repository within forty days of the date of the disposition. This
39 information shall be submitted on a form or in a manner specified by rules
40 approved by the supreme court.

41 11. The state department of corrections or the department of
42 juvenile corrections, within forty days, shall advise the central state
43 repository that it has assumed supervision of a person convicted of an
44 offense specified in subsection C of this section or section 8-341,
45 subsection Q, paragraph 3. The state department of corrections or the
46 department of juvenile corrections shall also report dispositions that
47 occur thereafter to the central state repository within forty days of the

1 date of the dispositions. This information shall be submitted on a form
2 or in a manner required by the department of public safety.

3 12. Each criminal justice agency shall query the central state
4 repository before dissemination of any criminal history record information
5 to ensure the completeness of the information. Inquiries shall be made
6 before any dissemination except in those cases in which time is of the
7 essence and the repository is technically incapable of responding within
8 the necessary time period. If time is of the essence, the inquiry shall
9 still be made and the response shall be provided as soon as possible.

10 V. The director shall adopt rules specifying that any agency that
11 collects, stores or disseminates criminal justice information that is
12 subject to this section shall establish effective security measures to
13 protect the information from unauthorized access, disclosure, modification
14 or dissemination. The rules shall include reasonable safeguards to
15 protect the affected information systems from fire, flood, wind, theft,
16 sabotage or other natural or man-made hazards or disasters.

17 W. The department shall make available to agencies that contribute
18 to, or receive criminal justice information from, the central state
19 repository or through the Arizona criminal justice information system a
20 continuing training program in the proper methods for collecting, storing
21 and disseminating information in compliance with this section.

22 X. This section does not create a cause of action or a right to
23 bring an action including an action based on discrimination due to sexual
24 orientation.

25 Y. The definition prescribed in subsection Z, paragraph 3 of this
26 section does not diminish or infringe on any rights protected under the
27 first amendment to the United States constitution or the Arizona
28 constitution.

29 Z. For the purposes of this section:

30 1. "Administration of criminal justice" means performance of the
31 detection, apprehension, detention, pretrial release, posttrial release,
32 prosecution, adjudication, correctional supervision or rehabilitation of
33 criminal offenders. Administration of criminal justice includes
34 enforcement of criminal traffic offenses and civil traffic violations,
35 including parking violations, when performed by a criminal justice agency.
36 Administration of criminal justice also includes criminal identification
37 activities and the collection, storage and dissemination of criminal
38 history record information.

39 2. "Administrative records" means records that contain adequate and
40 proper documentation of the organization, functions, policies, decisions,
41 procedures and essential transactions of the agency and that are designed
42 to furnish information to protect the rights of this state and of persons
43 directly affected by the agency's activities.

44 3. "Antisemitism" includes the definition of antisemitism that was
45 adopted by the international holocaust remembrance alliance on May 26,
46 2016 and that has been adopted by the United States department of state,

1 including the contemporary examples of antisemitism identified in the
2 adopted definition.

3 4. "Arizona criminal justice information system" or "system" means
4 the statewide information system managed by the director for the
5 collection, processing, preservation, dissemination and exchange of
6 criminal justice information and includes the electronic equipment,
7 facilities, procedures and agreements necessary to exchange this
8 information.

9 5. "Biometric data" means any physical characteristics, including
10 fingerprints and palm prints and face, tattoo and iris images.

11 6. "Booking agency" means the county sheriff or, if a person is
12 booked into a municipal jail, the municipal law enforcement agency.

13 7. "Central state repository" means the central location within the
14 department for the collection, storage and dissemination of Arizona
15 criminal history records and related criminal justice information.

16 8. "Criminal history record information" and "criminal history
17 record" means information that is collected by criminal justice agencies
18 on individuals and that consists of identifiable descriptions and
19 notations of arrests, detentions, indictments and other formal criminal
20 charges, and any disposition arising from those actions, sentencing,
21 formal correctional supervisory action and release. Criminal history
22 record information and criminal history record do not include
23 identification information to the extent that the information does not
24 indicate involvement of the individual in the criminal justice system or
25 information relating to juveniles unless they have been adjudicated as
26 adults.

27 9. "Criminal justice agency" means either:

28 (a) A court at any governmental level with criminal or equivalent
29 jurisdiction, including courts of any foreign sovereignty duly recognized
30 by the federal government.

31 (b) A government agency or subunit of a government agency that is
32 specifically authorized to perform as its principal function the
33 administration of criminal justice pursuant to a statute, ordinance or
34 executive order and that allocates more than fifty percent of its annual
35 budget to the administration of criminal justice. This subdivision
36 includes agencies of any foreign sovereignty duly recognized by the
37 federal government.

38 10. "Criminal justice information" means information that is
39 collected by criminal justice agencies and that is needed for the
40 performance of their legally authorized and required functions, such as
41 criminal history record information, citation information, stolen property
42 information, traffic accident reports, wanted persons information and
43 system network log searches. Criminal justice information does not
44 include the administrative records of a criminal justice agency.

45 11. "Disposition" means information disclosing that a decision has
46 been made not to bring criminal charges or that criminal proceedings have
47 been concluded or information relating to sentencing, correctional

1 supervision, release from correctional supervision, the outcome of an
2 appellate review of criminal proceedings or executive clemency.

3 12. "Dissemination" means the written, oral or electronic
4 communication or transfer of criminal justice information to individuals
5 and agencies other than the criminal justice agency that maintains the
6 information. Dissemination includes the act of confirming the existence
7 or nonexistence of criminal justice information.

8 13. "Management control":

9 (a) Means the authority to set and enforce:

10 (i) Priorities regarding development and operation of criminal
11 justice information systems and programs.

12 (ii) Standards for the selection, supervision and termination of
13 personnel involved in the development of criminal justice information
14 systems and programs and in the collection, maintenance, analysis and
15 dissemination of criminal justice information.

16 (iii) Policies governing the operation of computers, circuits and
17 telecommunications terminals used to process criminal justice information
18 to the extent that the equipment is used to process, store or transmit
19 criminal justice information.

20 (b) Includes the supervision of equipment, systems design,
21 programming and operating procedures necessary for the development and
22 implementation of automated criminal justice information systems.

23 14. "Process control number" means the Arizona automated
24 fingerprint identification system number that attaches to each arrest
25 event at the time of fingerprinting and that is assigned to the arrest
26 fingerprint card, disposition form and other pertinent documents.

27 [15. "QUALIFIED SCHOOL" HAS THE SAME MEANING PRESCRIBED IN SECTION
28 15-2401.]

29 [15.] [16.] "Rap back services" means real-time or near real-time
30 notifications of activity, such as arrests on an individual, for
31 authorized criminal justice or noncriminal justice purposes in which
32 continuous evaluation of the individual's criminal history is required.

33 [16.] [17.] "Secondary dissemination" means the dissemination of
34 criminal justice information from an individual or agency that originally
35 obtained the information from the central state repository or through the
36 Arizona criminal justice information system to another individual or
37 agency.

38 [17.] [18.] "Sexual orientation" means consensual homosexuality or
39 heterosexuality.

40 [18.] [19.] "Subject of record" means the person who is the
41 primary subject of a criminal justice record.>>

42 <<Sec. 11. Section 41-1758, Arizona Revised Statutes, is amended to
43 read:

44 41-1758. Definitions

45 In this article, unless the context otherwise requires:

46 1. "Agency" means the supreme court, the department of economic
47 security, the department of child safety, the department of education, the

1 department of health services, the department of juvenile corrections, the
2 department of emergency and military affairs, the department of public
3 safety, the department of transportation, the state real estate
4 department, the department of insurance and financial institutions, the
5 board of fingerprinting, the Arizona game and fish department, the Arizona
6 department of agriculture, the board of examiners of nursing care
7 institution administrators and assisted living facility managers, the
8 state board of dental examiners, the Arizona state board of pharmacy, the
9 board of physical therapy, the state board of psychologist examiners, the
10 board of athletic training, the board of occupational therapy examiners,
11 the state board of podiatry examiners, the acupuncture board of examiners,
12 the state board of technical registration, the board of massage therapy,
13 the board of behavioral health examiners or the Arizona department of
14 housing.

15 2. "Division" means the fingerprinting division in the department
16 of public safety.

17 3. "Electronic or internet-based fingerprinting services" means a
18 secure system for digitizing applicant fingerprints and transmitting the
19 applicant data and fingerprints of a person or entity submitting
20 fingerprints to the department of public safety for any authorized purpose
21 under this title. For the purposes of this paragraph, "secure system"
22 means a system that complies with the information technology security
23 policy approved by the department of public safety.

24 4. "Good cause exception" means the issuance of a fingerprint
25 clearance card to an applicant pursuant to section 41-619.55.

26 5. "Person" means a person who is required to be fingerprinted
27 pursuant to any of the following:

28 (a) Section 3-314.

29 (b) Section 8-105.

30 (c) Section 8-322.

31 (d) Section 8-463.

32 (e) Section 8-509.

33 (f) Section 8-802.

34 [(g) SECTION 15-154.]

35 [(g)] [(h)] Section 15-183.

36 [(h)] [(i)] Section 15-503.

37 [(i)] [(j)] Section 15-512.

38 [(j)] [(k)] Section 15-534.

39 [(k)] [(l)] Section 15-763.01.

40 [(l)] [(m)] Section 15-782.02.

41 [(m)] [(n)] Section 15-1330.

42 [(n)] [(o)] Section 15-1881.

43 [(p) SECTION 15-2402.]

44 [(o)] [(q)] Section 17-215.

45 [(p)] [(r)] Section 28-3228.

46 [(q)] [(s)] Section 28-3413.

47 [(r)] [(t)] Section 32-122.02.

1	[(s)]	<u>[(u)]</u>	Section 32-122.05.
2	[(t)]	<u>[(v)]</u>	Section 32-122.06.
3	[(u)]	<u>[(w)]</u>	Section 32-823.
4	[(v)]	<u>[(x)]</u>	Section 32-1232.
5	[(w)]	<u>[(y)]</u>	Section 32-1276.01.
6	[(x)]	<u>[(z)]</u>	Section 32-1284.
7	[(y)]	<u>[(aa)]</u>	Section 32-1297.01.
8	[(z)]	<u>[(bb)]</u>	Section 32-1904.
9	[(aa)]	<u>[(cc)]</u>	Section 32-1941.
10	[(bb)]	<u>[(dd)]</u>	Section 32-1982.
11	[(cc)]	<u>[(ee)]</u>	Section 32-2022.
12	[(dd)]	<u>[(ff)]</u>	Section 32-2063.
13	[(ee)]	<u>[(gg)]</u>	Section 32-2108.01.
14	[(ff)]	<u>[(hh)]</u>	Section 32-2123.
15	[(gg)]	<u>[(ii)]</u>	Section 32-2371.
16	[(hhh)]	<u>[(jj)]</u>	Section 32-3271.
17	[(iii)]	<u>[(kk)]</u>	Section 32-3430.
18	[(jjj)]	<u>[(ll)]</u>	Section 32-3620.
19	[(kk)]	<u>[(mm)]</u>	Section 32-3668.
20	[(lll)]	<u>[(nn)]</u>	Section 32-3669.
21	[(mmm)]	<u>[(oo)]</u>	Section 32-3922.
22	[(nnn)]	<u>[(pp)]</u>	Section 32-3924.
23	[(ooo)]	<u>[(qq)]</u>	Section 32-4128.
24	[(ppp)]	<u>[(rr)]</u>	Section 32-4222.
25	[(qqq)]	<u>[(ss)]</u>	Section 36-113.
26	[(rrr)]	<u>[(tt)]</u>	Section 36-207.
27	[(sss)]	<u>[(uu)]</u>	Section 36-411.
28	[(ttt)]	<u>[(vv)]</u>	Section 36-425.03.
29	[(uuu)]	<u>[(ww)]</u>	Section 36-446.04.
30	[(vvv)]	<u>[(xx)]</u>	Section 36-594.01.
31	[(www)]	<u>[(yy)]</u>	Section 36-594.02.
32	[(xxx)]	<u>[(zz)]</u>	Section 36-766.01.
33	[(yyy)]	<u>[(aaa)]</u>	Section 36-882.
34	[(zzz)]	<u>[(bbb)]</u>	Section 36-883.02.
35	[(aaaa)]	<u>[(ccc)]</u>	Section 36-897.01.
36	[(bbbb)]	<u>[(ddd)]</u>	Section 36-897.03.
37	[(cccc)]	<u>[(eee)]</u>	Section 36-1940.
38	[(dddd)]	<u>[(fff)]</u>	Section 36-1940.01.
39	[(eeee)]	<u>[(ggg)]</u>	Section 36-2069.
40	[(ffff)]	<u>[(hhh)]</u>	Section 36-3008.
41	[(gggg)]	<u>[(iii)]</u>	Section 41-619.52.
42	[(hhhh)]	<u>[(jjj)]</u>	Section 41-619.53.
43	[(iiii)]	<u>[(kkk)]</u>	Section 41-1964.
44	[(jjjj)]	<u>[(lll)]</u>	Section 41-1967.01.
45	[(kkkk)]	<u>[(mmm)]</u>	Section 41-1968.
46	[(llll)]	<u>[(nnn)]</u>	Section 41-1969.
47	[(mmmm)]	<u>[(ooo)]</u>	Section 41-2814.

1 ~~[(mmn)]~~ ~~[(ppp)]~~Section 41-4025.

2 ~~[(ooo)]~~ ~~[(qqq)]~~Section 46-141, subsection A or B.

3 ~~[(ppp)]~~ ~~[(rrr)]~~Section 46-321.

4 6. "Rap back services" has the same meaning prescribed in section
5 41-1750.

6 7. "Vulnerable adult" has the same meaning prescribed in section
7 13-3623.>>

8 <<Sec. 12. Section 41-1758.01, Arizona Revised Statutes, is amended
9 to read:

10 41-1758.01. Fingerprinting division; powers and duties

11 A. The fingerprinting division is established in the department of
12 public safety and shall:

13 1. Conduct fingerprint background checks for persons and applicants
14 who are seeking licenses from state agencies, employment with licensees,
15 contract providers and state agencies or employment or educational
16 opportunities with agencies that require fingerprint background checks
17 pursuant to sections 3-314, 8-105, 8-322, 8-463, 8-509, 8-802, [15-154.]
18 15-183, 15-503, 15-512, 15-534, 15-763.01, 15-782.02, 15-1330, 15-1881,
19 [15-2402.] 17-215, 28-3228, 28-3413, 32-122.02, 32-122.05, 32-122.06,
20 32-823, 32-1232, 32-1276.01, 32-1284, 32-1297.01, 32-1904, 32-1941,
21 32-1982, 32-2022, 32-2063, 32-2108.01, 32-2123, 32-2371, 32-3271, 32-3430,
22 32-3620, 32-3668, 32-3669, 32-3922, 32-3924, 32-4128, 32-4222, 36-113,
23 36-207, 36-411, 36-425.03, 36-446.04, 36-594.01, 36-594.02, 36-766.01,
24 36-882, 36-883.02, 36-897.01, 36-897.03, 36-1940, 36-1940.01, 36-2069,
25 36-3008, 41-619.52, 41-619.53, 41-1964, 41-1967.01, 41-1968, 41-1969,
26 41-2814 and 41-4025, section 46-141, subsection A or B and section 46-321.

27 2. Issue fingerprint clearance cards. On issuance, a fingerprint
28 clearance card becomes the personal property of the cardholder and the
29 cardholder shall retain possession of the fingerprint clearance card.

30 3. On submission of an application for a fingerprint clearance
31 card, collect the fees established by the board of fingerprinting pursuant
32 to section 41-619.53 and deposit, pursuant to sections 35-146 and 35-147,
33 the monies collected in the board of fingerprinting fund.

34 4. Inform in writing each person who submits fingerprints for a
35 fingerprint background check of the right to petition the board of
36 fingerprinting for a good cause exception pursuant to section 41-1758.03,
37 41-1758.04 or 41-1758.07.

38 5. If after conducting a state and federal criminal history records
39 check the division determines that it is not authorized to issue a
40 fingerprint clearance card to a person, inform the person in writing that
41 the division is not authorized to issue a fingerprint clearance card. The
42 notice shall include the criminal history information on which the denial
43 was based. This criminal history information is subject to dissemination
44 restrictions pursuant to section 41-1750 and Public Law 92-544.

45 6. Notify the person in writing if the division suspends, revokes
46 or places a driving restriction notation on a fingerprint clearance card
47 pursuant to section 41-1758.04. The notice shall include the criminal

1 history information on which the suspension, revocation or placement of
2 the driving restriction notation was based. This criminal history
3 information is subject to dissemination restrictions pursuant to section
4 41-1750 and Public Law 92-544.

5 7. Administer and enforce this article.

6 B. The fingerprinting division may contract for electronic or
7 internet-based fingerprinting services through an entity or entities for
8 the acquisition and transmission of applicant fingerprint and data
9 submissions to the department, including identity verified fingerprints
10 pursuant to section 15-106. The entity or entities contracted by the
11 department of public safety may charge the applicant a fee for services
12 provided pursuant to this article. The entity or entities contracted by
13 the department of public safety shall comply with:

14 1. All information privacy and security measures and submission
15 standards established by the department of public safety.

16 2. The information technology security policy approved by the
17 department of public safety.>>

18 <<Sec. 13. Section 41-1758.02, Arizona Revised Statutes, is amended
19 to read:

20 41-1758.02. Fingerprint checks; registration

21 A. The person, provider or agency shall submit a full set of
22 fingerprints to the division for the purpose of obtaining a state and
23 federal criminal history records check pursuant to section 41-1750 and
24 Public Law 92-544. If the person can present a valid fingerprint
25 clearance card or credible documentation that the person's application for
26 a fingerprint clearance card is pending, the person, provider or agency is
27 not required to submit another application for a fingerprint clearance
28 card. The division may exchange this fingerprint data with the federal
29 bureau of investigation.

30 B. Except as provided in section 15-106, [SUBSECTION A.] paragraph
31 9, the person shall submit a new set of fingerprints to the division for a
32 fingerprint background check every six years. The division shall conduct
33 a new state and federal criminal history records check on application for
34 a new card.

35 C. In order to apply for a fingerprint clearance card, a person
36 shall submit a completed application for a fingerprint clearance card
37 provided by the division.

38 D. The person, provider or agency shall submit the application
39 required by subsection C of this section along with the fingerprints and
40 applicable fee to the division for a criminal history records check.>>

41 <<Sec. 14. Section 41-1758.08, Arizona Revised Statutes, is amended
42 to read:

43 41-1758.08. Fingerprint clearance card; use of expired card

44 A. Notwithstanding any other law, an expired fingerprint clearance
45 card may be used to satisfy the fingerprint requirements of section
46 [15-154.] 15-183, 15-503, 15-512, 15-534, 15-782.02, 15-1330[.] [or]

1 15-1881 [OR 15-2402] if the person signs an affidavit stating both of the
2 following:

3 1. The person submitted a completed application to the division for
4 a new fingerprint clearance card within ninety days before the expiration
5 date on the person's current fingerprint clearance card.

6 2. The person is not awaiting trial on and has not been convicted
7 of a criminal offense that would make the person ineligible for a
8 fingerprint clearance card.

9 B. This section does not apply to a fingerprint clearance card that
10 has been denied, suspended or revoked or to a person who has requested a
11 good cause exception hearing.>>

12 <<Sec. 15. Qualified schools: fingerprint clearance card
13 requirements; implementation; definitions

14 [A. Notwithstanding section 15-2402, subsection B, Arizona Revised
15 Statutes, as amended by this act, until one year after the effective date
16 of this section, the department of education may not determine that
17 tuition or fees at a qualified school are not an allowable expense under
18 the Arizona empowerment scholarship accounts program solely because one or
19 more employees, contractors or other individuals who have not yet obtained
20 a fingerprint clearance card pursuant to title 41, chapter 12, article
21 3.1, Arizona Revised Statutes, provide services directly to qualified
22 students or have contact with students that is not supervised at the
23 qualified school.

24 B. For the purposes of this section:

25 1. "Qualified school" has the same meaning prescribed in section
26 15-2401, Arizona Revised Statutes.

27 2. "Qualified student" has the same meaning prescribed in sections
28 15-2401 and 15-2401.01, Arizona Revised Statutes.

29 3. "Supervised" has the same meaning prescribed in section 15-505,
30 Arizona Revised Statutes.]>>

31 <<Sec. 16. Arizona empowerment scholarship accounts; maximum
32 prior year carryforward; existing accounts

33 [Notwithstanding section 15-2402, subsection M, Arizona Revised
34 Statutes, as added by this act, if an Arizona empowerment scholarship
35 account has a balance that exceeds the maximum prior year carryforward
36 amount on the effective date of this act, the office of the state
37 treasurer may not transfer monies from the Arizona empowerment scholarship
38 account to the state general fund pursuant to section 15-2402, subsection
39 M, Arizona Revised Statutes, as added by this act. For the purposes of
40 this section, the maximum prior year carryforward amount is:

41 1. \$50,000 for the Arizona empowerment scholarship account of a
42 qualified student who meets any of the criteria specified in section
43 15-2401, paragraph 7, subdivision (a), item (i), (ii) or (iii), Arizona
44 Revised Statutes.

45 2. \$24,000 for the Arizona empowerment scholarship account of a
46 qualified student who does not meet any of the criteria specified in

1 section 15-2401, paragraph 7, subdivision (a), item (i), (ii) or (iii),
2 Arizona Revised Statutes.]>>

3 <<Sec. 17. Appropriation: department of education: Arizona
4 empowerment scholarship accounts administration

5 [15 FTE positions are appropriated from the state general fund in
6 fiscal year 2026-2027 to the department of education to administer the
7 Arizona empowerment scholarship accounts program established by title 15,
8 chapter 19, Arizona Revised Statutes.]>>

9 <<Sec. 18. Conditional enactment

10 [Sections 15-106, 15-2402, 15-2403, 15-2404 and 41-1750, Arizona
11 Revised Statutes, as amended by this act, and sections 15 and 16 of this
12 act do not become effective if a measure proposed by any of initiative
13 petitions I-06-2026, I-09-2026 or I-10-2026 is placed on the ballot of the
14 next general election.]>>

15 Enroll and engross to conform

16 Amend title to conform

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